



EMPLOYEE HANDBOOK

NONGSHIM USA, INC. [U.S. OFFICE]

Effective January 2026

Table of Contents

1. INTRODUCTION AND EMPLOYMENT PRINCIPLES	2
1.1 INTRODUCTION	2
1.2 CORPORATE AND TEAM VALUES	2
1.3 CONFLICTS OF INTEREST	3
1.4 CALIFORNIA TRANSPARENCY ACT	4
2. EMPLOYEE DEFINITION AND STATUS	4
2.1 EMPLOYEE DEFINED AND EMPLOYMENT CLASSIFICATION.....	4
2.2 EMPLOYEE CLASSIFICATIONS – OFFICE AND PRODUCTION.....	4
2.3 EMPLOYEE CLASSIFICATIONS – FULL-TIME AND TEMPORARY	4
2.4 EMPLOYEE CLASSIFICATIONS – NON-EXEMPT AND EXEMPT	5
2.5 INTRODUCTORY PERIOD FOR NEW EMPLOYEES	5
3. EMPLOYMENT POLICIES	6
3.1 THE COMPANY EMPLOYMENT POLICY	6
3.2 EQUAL EMPLOYMENT OPPORTUNITY	6
3.3 AT-WILL EMPLOYMENT	8
3.4 EMPLOYMENT OF RELATIVES	8
3.5 IMMIGRATION LAW COMPLIANCE - (I-9) VERIFICATION	9
3.6 AMERICANS WITH DISABILITIES ACT AND STATE LAWS PROTECTING DISABLED INDIVIDUALS	9
3.7 EMPLOYEE BACKGROUND CHECK	10
3.8 PRE-EMPLOYMENT SCREENING/ASSESSMENTS	10
3.9 MEDICAL EXAMINATION/ILLEGAL DRUG AND ALCOHOL TESTS	10
3.10 JOB DUTIES	10
3.11 PERSONNEL RECORDS AND ADMINISTRATION	10
3.12 CHANGE OF PERSONAL DATA.....	11
3.13 EMPLOYMENT OF MINORS	12
3.14 LACTATION ACCOMMODATION	12
4. COMPENSATION POLICIES	13
4.1 COMPENSATION	13
4.2 WORK SCHEDULE	13
4.3 PAYDAY	13
4.4 PAYROLL DEDUCTIONS	14
4.5 TIME REPORTING	14
4.6 MEAL & REST BREAK PERIODS POLICY – NON-EXEMPT EMPLOYEES	15
4.7 OVERTIME AND OTHER PAY POLICIES	16
4.8 ADVANCES/LOANS.....	17
4.9 PERFORMANCE EVALUATION.....	18

4.10 OPPORTUNITIES FOR ADVANCEMENT – PROGRESSION AND PROMOTION	18
4.11 TRANSFER POLICY.....	19
4.12 OUTSIDE EMPLOYMENT POLICY	19
5. STANDARDS OF CONDUCT AND WORK PERFORMANCE	19
5.1 GENERAL GUIDELINES	19
5.2 ATTENDANCE POLICY.....	20
5.3 HARASSMENT POLICY	21
5.4 DRUG-FREE WORKPLACE POLICY.....	23
5.5 POLICY ON NONDISCLOSURE AND PROTECTION OF CONFIDENTIAL INFORMATION.....	26
5.6 SOLICITATION, DISTRIBUTION & ACCESS POLICY	27
5.7 NO VIOLENCE IN THE WORKPLACE POLICY	27
5.8 ETHICAL STANDARDS.....	28
5.9 WORKPLACE ATTITUDE	28
5.10 WORK AREA.....	29
5.11 PERSONAL MAIL.....	29
5.12 ELECTRONIC COMMUNICATION (E-MAIL), SOFTWARE, & INTERNET	29
5.13 USE OF COMPUTER SOFTWARE.....	33
5.14 SOCIAL MEDIA NETWORK POLICY	33
5.15 PHONE USAGE POLICY	36
5.16 SMOKING POLICY	37
5.17 VISITORS IN THE WORKPLACE.....	37
5.18 CORRECTIVE PROCEDURE	37
5.19 CRISIS SUSPENSION	37
5.20 EMPLOYMENT TERMINATION/RESIGNATION/LAYOFF	37
5.21 COMPANY PROPERTY.....	38
5.22 WORKPLACE INSPECTIONS - EMPLOYEE PRIVACY NOTICE.....	39
5.23 SAFETY RULES AND PROCEDURES	40
5.24 INJURY ON THE JOB, FIRST AID TREATMENT & WORKERS' COMPENSATION	41
5.25 DRESS CODE POLICY.....	42
5.26 COMPANY SOCIAL EVENTS	42
5.27 DAMAGE TO COMPANY PROPERTY	43
6. UNACCEPTABLE CONDUCT – GUIDELINES AND DISCIPLINE.....	43
6.1 AT-WILL EMPLOYMENT AND DISCIPLINE.....	44
7. EMPLOYEE GROUP BENEFITS.....	44
7.1 BENEFITS SUMMARIES AND ELIGIBILITY	44
7.2 GROUP INSURANCE.....	44

7.3 DISABILITY INSURANCE	45
7.4 UNEMPLOYMENT INSURANCE	45
7.5 WORKERS' COMPENSATION INSURANCE	45
7.6 401(k) PLAN	45
7.7 EMPLOYEE DISCOUNTS	46
8. TIME-OFF BENEFITS	46
8.1 PAID HOLIDAYS	46
8.2 VACATION BENEFIT	47
8.3 PAID SICK LEAVE	48
8.4 BEREAVEMENT LEAVE	49
8.5 CALIFORNIA - REPRODUCTIVE LOSS LEAVE	50
8.6 CIVIC DUTY COMMITMENTS	51
8.7 MILITARY RESERVES OR NATIONAL GUARD AND RELATED LEAVES OF ABSENCE	51
8.8 CALIFORNIA – CIVIL AIR PATROL	52
8.9 FAMILY/MEDICAL LEAVE OF ABSENCE	52
8.10 CALIFORNIA – CALIFORNIA FAMILY RIGHTS ACT LEAVE (CFRA)	56
8.11 CALIFORNIA – PAID FAMILY LEAVE	58
8.12 CALIFORNIA - PREGANCY DISABILITY LEAVE AND TRANSFER PRIVILEGES	58
8.13 INTERMITTENT LEAVES	59
8.14 CALIFORNIA - SCHOOL ACTIVITIES LEAVE	59
8.15 CALIFORNIA - BONE MARROW TRANSPLANT AND ORGAN DONATION LEAVE	60
8.16 CALIFORNIA - LEAVE FOR CRIME VICTIMS TO ATTEND JUDICIAL PROCEEDINGS AND VICTIM'S RIGHTS PROCEEDINGS	61
8.17 CALIFORNIA - LEAVE FOR VICTIMS OF QUALIFYING ACTS OF VIOLENCE 61	
8.18 CALIFORNIA - ALCOHOL AND DRUG REHABILITATION LEAVE	62
8.19 PERSONAL LEAVE OF ABSENCE	63
8.20 EXTENSION OF LEAVES	63
8.21 PROCEDURE FOR OBTAINING LEAVE	63
8.22 RETURNING FROM LEAVE	64
8.23 EMPLOYMENT WHILE ON LEAVE	64
8.24 BENEFITS WHILE ON LEAVE	64
8.25 CALIFORNIA - VOTING LEAVE	64
9. EXPENSES	64
9.1 INTRODUCTION	64
9.2 EXPENSE REIMBURSEMENT	65
9.3 COMPANY SUPPLIES, OTHER EXPENDITURES	65

9.4 MILEAGE REIMBURSEMENT	65
10. EMPLOYEE COMMUNICATIONS	66
10.1 OPEN DOOR POLICY	66
10.2 OPEN COMMUNICATION	67
10.3 BULLETIN BOARDS	67
10.4 SUGGESTIONS	67
10.5 CLOSING STATEMENT	67
RECEIPT OF HANDBOOK, ACKNOWLEDGMENT OF AT-WILL EMPLOYMENT	68

MISSION STATEMENT

***Mission Statement**

The mission of **NONGSHIM USA, INC.** is to realize customer satisfaction by providing better products and services and, consequently, to contribute to the enrichment of employees and customers' lives.

***Vision Statement**

NONGSHIM USA, INC.'s vision is to be our customer's first choice by always meeting or exceeding their needs and expectations in a quality and service-oriented environment. We will achieve superior growth and profitability by developing strategic relationships with our customers, suppliers, and our employees, thereby enabling NONGSHIM USA, INC. to continue its tradition of providing excellent customer service, value, and quality.

Our vision is to become a global food company that pursues customers' health and happiness under the slogan "Lovely Life Lovely Food."

We seek to become the world's best food and service provider that contributes to the enhancement of mankind's health and quality of life by keeping up the trends of information, globalization and specialization.

1. INTRODUCTION AND EMPLOYMENT PRINCIPLES

1.1 INTRODUCTION

This Employee Handbook, together with any applicable state supplement, (the “Handbook”) is designed to familiarize you with the policies, procedures, practices, and benefits at NONGSHIM USA, INC. (the “Company” or “NONGSHIM”). This Handbook is intended for Office Employees. Although the Handbook is not a contract and is not intended to create any express or implied contractual obligations, you are required to read and understand the provisions of the Handbook.

The effective date of this Handbook is January 1, 2026. This Handbook supersedes all previously issued handbooks and any inconsistent policies. The Company reserves the right to revise, modify, rescind, delete, or add to the provisions of this Handbook from time to time in its sole and absolute discretion. The Company will attempt to provide you with notification of such changes when they occur. No oral statements or representations can in any way change or alter the provisions of this Handbook.

This Handbook contains a summary of the Company’s policies and practices and is not intended to address all of the possible applications of, or exceptions to, the general policies described herein. The Company reserves the right to interpret the provisions of this Handbook in its sole discretion. Further, because the Company maintains offices in several states, and because the employment laws of different states vary, the terms of this Handbook are subject to the laws of the state in which you are employed and, where the terms hereof are inconsistent with your state’s laws, the laws of your state control for purposes of your employment.

Should you have any questions about this Handbook or employment with the Company, or if your first language is not English, please contact the Human Resources Team at the Regional Headquarters in the City of Rancho Cucamonga (hereinafter referred as “Human Resources Team”).

1.2 CORPORATE AND TEAM VALUES

Values: As we work toward accomplishing our mission and fulfilling our vision, we will stand firm to an established set of values that will shape our interactions with our customers, suppliers and work associates. These values include:

- **Integrity** - Treat customers, suppliers and associates in an open, fair, honest and ethical manner.
- **Customer-Driven** - Always meet or exceed all customers’ expectations through a well-trained, motivated and well-equipped work force that listens to customers and anticipates their changing needs.

- **Teamwork** - Combine the energy and creativity of our empowered employees, encouraging them to work together to achieve the best solutions and performance for our business.
- **Economic Value** - Increase Company value by making the best use of our human and capital resources.
- **Diversity** - Create an environment that values differences among employees and customers and encourages respect at all levels.
- **Loyalty** - Enhance customer loyalty by treating customers as assets and offering truly superior value. Attract, reward and retain a team of talented and dedicated employees that share the Company's values.
- **Partnership** - Build mutually beneficial and sustaining relationships with our customers and suppliers.

Manager Leadership: Managers of NONGSHIM must display competent leadership while sincerely caring for each individual employee. It is a manager's duty to secure a motivating and safe environment for their employees' growth and success. For all Company policies listed hereinafter, managers should consider employee's circumstances and situations when deciding the best possible solution in line with Company policies.

Employee Team Support: Employees of NONGSHIM must display a strong desire for growth and success both individually and as a team. It is an employee's duty to cooperate and assist the manager for the achievement of the Company's goals and visions. For all Company policies listed hereinafter, employees should consider manager's circumstances and situations when deciding the best possible solution in line with Company policies.

1.3 CONFLICTS OF INTEREST

NONGSHIM respects your right to engage in activities that are private in nature and do not conflict with or reflect unfavorably upon the Company. You are responsible for avoiding situations that could lead to a conflict of interest and for avoiding undue outside influence upon decisions or actions required in performance of your work. This includes, but is not limited to, the acceptance of gifts, bonuses, loans, entertainment, hospitality or anything else involving personal gain from those who conduct business with the Company. (Other than those valued at equal to or less than \$50 and offered as part of normal business courtesy.) This also includes using one's position or the knowledge gained in one's position with NONGSHIM for personal gain or advantage for oneself or for a third party. Should there be any doubt in your mind, you should discuss the matter with your manager and obtain written approval from the Company to participate in the questioned activity. Failure to notify the Company and receive written approval may result in disciplinary action up to and including termination of employment. All NONGSHIM employees are under a continuing obligation to make full disclosure to their

manager of all situations involving either actual or potential conflicts of interest, whenever such situations arise. An employee may be discharged for having engaged in conduct which constitutes a conflict or for failing to promptly disclose a situation involving an actual or potential conflict of interest.

1.4 CALIFORNIA TRANSPARENCY ACT

The California legislature enacted the California Transparency in Supply Chains Act of 2010 (“Act”), which became effective January 1, 2012. The purpose of the Act is to ensure that retailers and/or producers of goods disclose their efforts to eradicate slavery and human trafficking from their supply chain. NONGSHIM strives for the highest level of honesty, integrity and ethics in its business practices and, has implemented policies and procedures aimed to prevent slavery and human trafficking in its supply chain. Consistent with our commitment, NONGSHIM conducts ongoing internal assessments of its direct supply chain aimed, among other things, at understanding the potential challenges in a global supply chain of the risks of human trafficking and slavery. In this regard, NONGSHIM reviews available data and reports from organizations and companies dedicated to social compliance.

2. EMPLOYEE DEFINITION AND STATUS

2.1 EMPLOYEE DEFINED AND EMPLOYMENT CLASSIFICATION

All employees of NONGSHIM are hired into jobs that carry certain classifications. The classifications are “Office Employee,” “Production Employee,” “Full-Time,” “Temporary,” “Non-exempt” and “Exempt.” The following definitions will be helpful to you in defining your employee status. These terms are used in this Handbook and in our internal communications.

2.2 EMPLOYEE CLASSIFICATIONS – OFFICE AND PRODUCTION

Office Employee: An employee who is hired into an office job position.

Production Employee: An employee who is hired into a production job position. A Production Employee generally works in the following teams in the Production area: Warehouse, Engineering, Quality Assurance, Noodle Production Line, Soup Production Line and Housekeeping.

2.3 EMPLOYEE CLASSIFICATIONS – FULL-TIME AND TEMPORARY

Full-Time Employee: An employee hired into a job that requires a regular work schedule of a full workday and/or a full workweek, usually consisting of not less than six (6) hours per day and thirty (30) hours per week. Regular, full-time employees are eligible for Company-provided or sponsored benefits.

Temporary Employee: An employee that is hired for a specific short period of time and/or seasonal project based work, which job may require a regular work schedule, a full or partial

workday and/or a full or partial workweek, or some combination of them. A temporary employee may be an exempt or a non-exempt employee (see below). A temporary employee is not eligible to participate in Company benefit programs, including without limitation any employer-provided or sponsored benefits or any compensation practices including without limitation such things as paid vacations and health benefits, other than any benefits required by applicable law.

2.4 EMPLOYEE CLASSIFICATIONS – NON-EXEMPT AND EXEMPT

All jobs are defined as “exempt” or “non-exempt” using the criteria established by the Fair Labor Standards Act (FLSA), a federal law defining the requirements for paying overtime, and California law (or other state law, as applicable).

Non-exempt: Employees performing non-exempt jobs are entitled to overtime pay for work in excess of 40 hours in a workweek or as otherwise required by applicable state law.

Exempt: Employees performing exempt jobs are exempted from the overtime and certain other provisions of the FLSA and California law (or other state law, as applicable). An exempt employee is paid on a salary basis to accomplish responsibilities and tasks, without regard to the time required.

2.5 INTRODUCTORY PERIOD FOR NEW EMPLOYEES

An Introductory Period of three (3) months begins on your first day of employment. During this period, both employee and Company have the opportunity to determine whether they desire to continue the employment relationship.

The Introductory Period provides you with an opportunity to learn your new job duties and to become accustomed to working with the Company.

The Company may terminate the Introductory Period at any time. The Introductory Period may also be extended for an additional month to 3 months in the Company’s sole and absolute discretion. If the Company determines that such an extension is appropriate, you will not be eligible for certain benefits (including paid vacation, bonus compensation, and use of certain Company provided property such as cell phones, access cards, and portable computers) during the extended Introductory Period except as otherwise required by law.

During the Introductory Period, your performance and progress will be continually evaluated. Prior to the end of your Introductory Period, you will receive an evaluation, which will be discussed with you.

After completing the Introductory Period, or any extension, you are eligible to participate in all Company benefits at the following month’s first day. At company’s sole discretion, certain employees may be exempted from Introductory period.

The successful completion of the Introductory Period is only one step in your employment at NONGSHIM and does not mean that NONGSHIM will thereafter employ you for any specific period of time. ***Satisfactory completion of the Introductory period does not alter the AT-WILL character of your employment relationship at NONGSHIM, and your employment may be terminated at any time and with or without cause during or after the Introductory Period.***

3. EMPLOYMENT POLICIES

3.1 THE COMPANY EMPLOYMENT POLICY

If individuals succeed in their efforts, the Company can be expected to succeed.

Individual success requires certain abilities. An atmosphere that provides personal challenges and opportunity is equally important.

Therefore, our goal as your employer is to:

- Regard each employee/applicant equally without regard to characteristics protected under applicable federal, state or local law. Further, no qualified applicant, employee, intern, volunteer, or apprenticeship trainee shall be discriminated against based upon a combination of two (or more) bases protected by state law.
- Provide working conditions that are safe, healthful and harmonious.
- Provide benefits to assist you in the event of sickness, accident, or disability.
- Help you understand and perform your job in the safest and most efficient manner.
- Provide an environment in which you have the right to discuss freely with your manager suggested improvements in working conditions, policies and practices.
- Grant you fair treatment and settle any problems promptly by use of the problem solving procedure outlined in this Handbook.
- Constantly seek to improve general working conditions so that our daily work will be performed in a spirit of friendship and cooperation.
- Recognize that the Company must, under proper management of personnel, production and distribution, safeguard the welfare of all employees.

3.2 EQUAL EMPLOYMENT OPPORTUNITY

Everyone should be afforded equal opportunity for employment and advancement at all levels of work, completely free from bias. We endorse these principles as ethical and moral.

NONGSHIM is an equal opportunity employment employer. NONGSHIM does not unlawfully discriminate on the basis of race, religious creed, religious belief, observance, or practice, including dress or grooming practices, color, age, national origin (including language use restrictions, or an employee's or applicant's possession of a driver's license issued under Vehicle Code Section 12801.9 (which authorizes licenses to individuals who cannot provide satisfactory proof of their presence in the U.S. under federal law), ancestry, physical disability, mental disability, medical condition (including any cancer-related physical or mental health impairment from a diagnosis, record or history of cancer), genetic information or characteristics, marital status, sex (including pregnancy, childbirth, breastfeeding or medical conditions relating to any of these things), gender, gender identity (meaning a person's identification as male, female, a gender different from the person's sex at birth, or transgender), gender expression (meaning a person's gender-related appearance or behavior, whether or not stereotypically associated with the person's sex at birth), sexual orientation, reproductive health decisions, military and veteran status, or any other basis prohibited by applicable federal, state or local law. NONGSHIM is dedicated to the fulfillment of this policy in regard to all aspects of employment, including but not limited to recruiting, hiring, placement, transfer, training, promotion, rates of pay, and other compensation, termination, and all other terms, conditions, and privileges of employment.

If you believe someone has violated this policy, you should immediately bring the matter to the attention of the Human Resources Team. The Company will promptly investigate the facts and circumstances of any claim this policy has been violated and take appropriate corrective measures, without expense or undue burden to you.

Employees are required to cooperate in any investigation. No employee will be subject to, and the Company prohibits, any form of discipline or retaliation for reporting in good faith incidents of unlawful discrimination, pursuing any such claim, or cooperating in any way in the investigation of such reports. A strong commitment by each employee is necessary to assure equal opportunity for all. Retaliation against any employee for filing a complaint or participating in an investigation is prohibited; retaliation should be reported as above.

Any employee, supervisor, or manager who is found to have engaged in prohibited discriminatory or retaliatory conduct will be subject to disciplinary action up to and including discharge.

Religious Accommodations: In keeping with the Company's equal employment opportunity policy, the Company will provide reasonable accommodation of an applicant's or employee's sincerely held religious belief if the accommodation resolves a conflict between the individual's religious beliefs or practices and a work requirement, unless doing so would create an undue hardship for the Company. Applicants or employees who believe they may need reasonable accommodation should notify the Human Resources Team

Pregnancy Accommodations: The Company will provide reasonable accommodations to an employee for known limitations related to pregnancy, childbirth or related medical conditions

where required by, and in accordance with, applicable law. It is your responsibility to notify the Human Resources Team if you believe you need an accommodation.

Selection for employment is based on the merits of the individual in relation to the requirements of the position and of the Company. The qualifications considered include, but are not limited to, such things as aptitude, ability, experience, skill, and personal qualities.

Merit increases and promotions are granted on the basis of individual performance, ability, and Company needs and performance.

Employment terminations or reductions in force due to decreasing workload are based primarily on performance and ability. Length of service with NONGSHIM may, however, be a factor in the same work category where equal ability and performance are involved.

3.3 *AT-WILL EMPLOYMENT*

NONGSHIM is an “at-will” employer. This means you are free to leave your employment at any time, with or without cause or notice, and the Company retains the right to terminate the employment relationship at any time, with or without cause or notice. Nothing in this Handbook or in any document or statement, written or oral, is intended to or shall limit or change the right to terminate employment at-will. No manager, Human Resources Team member or other employee of NONGSHIM has any authority to enter into an agreement for employment for any specified period of time or to make an agreement for employment other than at-will. This policy of at-will employment may be changed only by a written employment agreement signed by an authorized corporate officer of NONGSHIM that expressly changes the policy of at-will employment.

3.4 *EMPLOYMENT OF RELATIVES*

NONGSHIM is pleased to consider for employment qualified applicants even when related to employees. When NONGSHIM employs more than one member of a family, the family members may not work in a direct managerial relationship or in job positions in which a conflict of interest could arise, such as where one employee is in a position to influence a relative’s employment, transfer, promotion or salary. . If such a situation should arise, management will decide which employee should be transferred. For the purposes of this manual a relative/family member includes but is not limited to the following:

- Spouse
- Parent, grandparent
- Legal guardian
- Sister or Brother

- Son or Daughter
- Aunt or Uncle
- Domestic Partner
- Any in-law or step relative of the above

When employees marry or become domestic partners, NONGSHIM will try to accommodate both employees within these guidelines. If accommodation is not possible, only one employee may remain on staff. Generally, in such cases except where business needs dictate, the affected spouses or domestic partners will be given the choice of which one remains employed with the Company and which one leaves.

3.5 IMMIGRATION LAW COMPLIANCE - (I-9) VERIFICATION

All offers of employment are contingent on verification of your right to work in the United States. The Company is committed to employing only United States citizens and aliens who are authorized to work in the United States and does not unlawfully discriminate on the basis of citizenship or national origin. In compliance with the Immigration Reform and Control Act of 1986, each new employee, as a condition of employment, must complete the Employment Eligibility Verification Form I-9 and present documentation establishing identity and employment eligibility. Former employees who are rehired must also complete the form if they have not completed an I-9 within the past three years, or if their previous I-9 is no longer retained or valid. Current employees are also required to advise the Company and update work eligibility status, should their status expire or change. Employees with questions or seeking more information on immigration law issues are encouraged to contact the Human Resources Team.

3.6 AMERICANS WITH DISABILITIES ACT AND STATE LAWS PROTECTING DISABLED INDIVIDUALS

NONGSHIM complies with the Americans with Disabilities Act (ADA), and applicable state and local laws (such as the California Fair Employment & Housing Act) related to disability accommodation and discrimination. NONGSHIM will not discriminate against any qualified employee or job applicant with respect to any terms, privileges, or conditions of employment because of a person's physical or mental disability. Furthermore, the Company will provide reasonable accommodations for the known disabilities of applicants or employees to enable them to perform the essential functions of their positions, unless undue hardship would result. Applicants or employees who believe they may need reasonable accommodation should notify the Human Resources Team. The need for accommodation is determined on a case-by-case basis through an interactive process with the employee's or applicant's healthcare provider(s) to confirm the existence of the condition, its limitations in the workplace, and possible reasonable accommodations, if any. Employees have an obligation to cooperate with NONGSHIM in this process.

3.7 EMPLOYEE BACKGROUND CHECK

In compliance with the California Fair Chance Act (AB 1008) and all other applicable federal, state and local laws, upon making an offer of employment, NONGSHIM may conduct a job-related background check. A comprehensive background check may consist of prior criminal record, employment verification, professional reference checks, and education confirmation. All background checks will be conducted in accordance with applicable laws.

3.8 PRE-EMPLOYMENT SCREENING/ASSESSMENTS

All applicants are required to successfully complete several job-related screenings/assessments. To maintain a safe work environment and a safe product in the marketplace, NONGSHIM requires the successful completion of various types of screenings/assessments as a condition of employment. All federal, state, and local requirements concerning job related screenings of NONGSHIM's employees are adhered to. All applicants being considered for employment with NONGSHIM will be required to submit to a pre-employment physical and drug screening. Human Resources Team will designate the location of where these pre-employment screenings will be conducted.

3.9 MEDICAL EXAMINATION/ILLEGAL DRUG AND ALCOHOL TESTS

NONGSHIM may require an employee to submit to a medical examination and/or tests for illegal drugs or alcohol when the Company has reasonable suspicion that an employee is under the influence, to the extent permitted by, and in accordance with, applicable law. Failure to submit to a medical exam/test, or failing to pass the exam/test, may result in termination of employment. (Please see section 5.4 Drug Free Workplace Policy of the Handbook.)

3.10 JOB DUTIES

Your manager will explain your job responsibilities and the performance standards expected of you. Be aware that your job responsibilities may change at any time during your employment. From time to time, you may be asked to work on special projects or to assist with other work necessary or important to the operation of your department or other departments of NONGSHIM. Your cooperation and assistance in performing such different work is expected. The Company reserves the right to alter or change job responsibilities, reassign or transfer job positions, or assign additional job responsibilities at any time, with or without notice.

3.11 PERSONNEL RECORDS AND ADMINISTRATION

Confidentiality: It is necessary for NONGSHIM to maintain certain records about you which are directly related to your job and NONGSHIM's responsibilities. At all times, the Company will do its best to balance your rights to privacy with the Company's need to collect and use your personal information. Any request for information from personnel files must be directed to the Human Resources Team's Manager. Only the Human Resources Team's Manager is authorized to release information about current or former employees. NONGSHIM will cooperate with

requests from authorized law enforcement, or local, state or federal agencies conducting official investigations and as otherwise legally required.

Reviewing Your Personnel File: Your personnel file is confidential and is available to you, your manager and higher management. It will only contain such information as is needed by the Company to conduct its business or as is required by federal or state law. Ask your manager to make appropriate arrangements and an appointment will be made for a mutually convenient time.

California-based employees may, upon written request to Human Resources, inspect and make copies of their personnel file, including, to the extent the Company maintains such records, any education or training records of the employee, and/or payroll records within 30 days of Human Resources' receipt of the written request. Employees may view the records in the presence of a Company representative at the employee's place of work or another location agreeable to the employee and the Company. For former employees, records will be made available for inspection at the location where they are stored, unless the parties mutually agree in writing to a different location. The employee may be required to pay the reasonable cost of duplication, should the employee want a copy. The right to inspect personnel files and records does not apply to records relating to the investigation of a possible criminal offense, letters of reference, or ratings, reports, or records that (a) were obtained prior to the employee's employment, (b) were prepared by identifiable examination committee members, or (c) were obtained in connection with a promotional exam.

Medical records and background check reports, if any, will be kept in a separate confidential file.

3.12 CHANGE OF PERSONAL DATA

Employees have the responsibility to ensure that their personnel files are up-to-date. The Company should be notified of any changes in:

- Legal name;
- Home address;
- Home contact telephone number;
- Contact person in case of an emergency;
- Tax Filing Status (W-4);
- Group insurance coverage particulars;
- 401(k) Plan and life insurance plan beneficiary;
- Qualifications (e.g., diploma, degree); and

- Any other records the Company deems necessary.

Any change needs to be reported in writing without delay to the Human Resources Team. Failure to keep your records up-to-date shall relieve the Company of any of its responsibilities as a result of inaccurate information. Falsification of any information can result in legal difficulties with both state and federal agencies and/or dismissal from the Company.

3.13 EMPLOYMENT OF MINORS

The Company strictly adheres to all applicable laws regarding employment of minors including those limiting the work activities of minors, limiting hours worked by minors, and the requirement of student work permits.

3.14 LACTATION ACCOMMODATION

Upon request, all employees who are nursing mothers are eligible to take reasonable breaks under this policy to express breast milk for the employee's child unless providing this break time would seriously disrupt NONGSHIM's operations. The break time shall, if possible, run concurrently with any break time already provided to the employee. In the event it is not possible for the break time for expressing milk to run concurrently with the paid break time already provided to the employee, the break time for expressing milk is unpaid if it is longer than 20 minutes and the employee is completely relieved of duties during the break. The Company will provide all employees desiring to express breast milk at work with a private, functional area, other than a bathroom, in close proximity to the employee's work area, in which to express milk. Employees anticipating the need for lactation breaks should notify the Human Resources Team as soon as possible so that the Company can arrange for an appropriate space

California Employees: Except where it would pose an undue hardship to NONGSHIM, NONGSHIM will provide a room or other location other than a toilet, shielded from intrusion, in close proximity to the employee's work area, where the employee can express milk in private. This area will, unless it poses an undue hardship to NONGSHIM, be safe, clean and free from toxic or hazardous substances, contain a surface to place a breast pump and other personal items, contain a place to sit, and have access to electricity. NONGSHIM will also provide, in close proximity to the employee's work area, access to a refrigerator where the employee can store breast milk, and a sink with running water. It will satisfy this policy if the location provided is used for other purposes so long as it can be used for lactation purposes when needed. The room or location may also include the place where the employee normally works if it otherwise meets these requirements. Employees may request a lactation accommodation by contacting the Human Resources Team. A request may be made orally or in writing. NONGSHIM will respond to a request for a lactation accommodation as quickly as possible, but no later than five business days following receipt of the request. If NONGSHIM cannot provide the requested accommodation, NONGSHIM will notify the employee in writing. Should an employee feel that NONGSHIM has not provided the appropriate facilities and/or accommodation required under the law, the

employee may file a complaint with the California Labor Commissioner. NONGSHIM will not discriminate or retaliate against any employee for exercising their rights under the law.

4. COMPENSATION POLICIES

4.1 COMPENSATION

It is NONGSHIM's desire to pay all employee's wages or salaries that are competitive with other employers in the marketplace and in a way that will be motivational, fair, and equitable. Compensation may vary based on roles and responsibilities, individual, and company performance, and in compliance with all applicable laws.

4.2 WORK SCHEDULE

Workweek:

For pay purposes, our official workweek is seven (7) consecutive days, beginning at 12:01 a.m. on Monday and ending at midnight the following Sunday.

Normal Hours/Days of Work:

Full-time employees are normally expected to work a scheduled 40-hour week. Temporary employees will be instructed on their schedule. The hours and days of work for each employee may vary by departments or by company need. An employee's work schedule can be changed at any time by the Company.

In addition, overtime work may, from time to time, be required. Work hours may also be reduced or eliminated to meet Company needs.

4.3 PAYDAY

Employees generally receive a paycheck bi-weekly for all work performed for a two-week period ending at Midnight on the preceding Sunday, unless otherwise required by applicable law. When a payday falls on a holiday, employees will be paid the day before the holiday or weekend. The Company's payroll policies including its pay-periods, paydays, and workweeks are subject to change upon notice to employees.

If you are absent on payday, you may:

- Request that your check be mailed to you;
- Receive your check when you return to work; or

- Make arrangements for someone else to deliver your check to you, providing that, to protect you and the Company, we must have a signed note from the employee authorizing the release to another person.

4.4 PAYROLL DEDUCTIONS

The Company will make deductions and withholdings from employee's paychecks as required by federal, state or local laws, rules or regulations (e.g., social security taxes). In addition, an employee may choose to participate in a voluntary program that requires a deduction from an employee's paycheck (e.g. additional federal and state tax withholding). By participating in any such program, an employee authorizes the Company to make such deduction and acknowledges that such deduction is for the employee's benefit. The Company will occasionally be requested by a state, federal or local governmental agency to make deductions from an employee's paycheck (for example, for an unpaid judgment or child support). It is the Company's policy to fully comply with all such wage garnishment requests.

Exempt employees shall be paid the full amount of salary for each week in which they perform work without regard to the number of days or hours worked. Exempt employees' weekly salary shall not be subject to reduction because of variations in the quality or quantity of the work performed. Further, deductions will not be made from salary for absences occasioned by the Company or by the operating requirements of the business. If an exempt employee is ready, willing and able to work, deductions will not be made for time when work is not available, except that the Company may make certain salary deductions as allowed by law, including but not limited to reductions for certain full day absences, such as when the employee is suspended for violation of any written work conduct rule of the Company applicable to all employees. The Company strictly forbids deductions from the salary of exempt employees other than those permitted under federal wage and hour law. Deductions from the salary of an exempt employee must be approved by the payroll manager or other responsible manager.

It is your responsibility to verify the correctness of the amount of pay, and all deductions and withholdings from such pay, in each of your paychecks promptly following the deposit of such paycheck, and in no event later than the next pay date. In the event you feel that there is an error in your pay, you should immediately report this error to Human Resources. The Company will promptly investigate the discrepancy and take any necessary corrective action.

4.5 TIME REPORTING

All non-exempt employees are required to use the Company's time clock system to accurately measure their daily hours worked. Each non-exempt employee is responsible only for their own timekeeping. Nonexempt employees must record ALL hours worked, including overtime. Non-exempt employees who anticipate the need for overtime to complete a week's work must notify their team managers in advance and obtain approval before working hours that extend beyond their normal schedule. By recording their hours, an employee certifies that they accurately

reflect all hours worked by the employee during the relevant time period. Falsification of time records or submission of time records for other employees is strictly prohibited.

4.6 MEAL & REST BREAK PERIODS POLICY – NON-EXEMPT EMPLOYEES

Meal Break Periods: An unpaid meal break period is normally scheduled near the midpoint of the work period. Each Office Employee is required by the Company take an unpaid meal period of not less than one hour duration for any workday longer than 5 hours, with the meal period to commence (and employee to punch out) before the end of the fifth hour of the employee's work shift. Each employee who works more than ten hours in one day is required by the Company to take a second unpaid meal period of not less than thirty minutes, to commence (and the employee to punch out) before the end of the tenth hour of the employee's work shift, except that an employee whose work during that work day will be completed in 12 hours or less, and who took a first meal period commencing at or prior to working 5 hours during that work day, may waive the second meal period. Employees are released and relieved from all work duties during their meal periods and are permitted to leave the premises during meal periods. Non-exempt office employees will be required to record on a company-provided form the beginning and ending time of their meal periods.

Break Periods: The Company makes available to all non-exempt employees the following paid, 10-15 minute, off-duty rest periods:

- If the non-exempt employee's shift is between 3.5 hours and 6 hours long, one paid, 10-15 minute, off-duty rest period;
- If the non-exempt employee's shift is more than 6 hours long and up to 10 hours long, two paid, 10-15 minute, off-duty rest periods;
- If the non-exempt employee's shift is more than 10 hours long and up to 14 hours long, three paid, 10-15 minute, off-duty rest periods; and
- If the non-exempt employee's shift is more than 14 hours long, the non-exempt employee will be expected to take additional paid, 10-15 minute, off-duty rest periods during his or her shift.

Whenever possible, these rest periods should be taken in approximately the middle of each 4-hour period that the non-exempt employee works. Non-exempt employees are not permitted to check or monitor any device for work-related reasons while on a meal or rest period.

"Off-duty" in this policy means that employees are not required to carry, monitor or respond to pages, text messages, data messages, voice calls, radio calls, or any other form of communication from the Company.

Non-exempt employees must take all scheduled meal periods and breaks. Non-exempt employees are required by Company policy to sign in and sign out for each paid rest break taken, using Company provided forms, but are paid for time spent on rest breaks. Violations of this Break Period policy will be subject to discipline, up to and including termination.

4.7 OVERTIME AND OTHER PAY POLICIES

Overtime Pay:

As necessary, employees may be required to work overtime. However, only non-exempt employees qualify for overtime pay. Overtime pay will comply with state and federal regulations.

Generally, in states other than California, this means payment at a rate of one and one-half (1.5) times your regular hourly rate of pay for all hours worked in excess of forty (40) in any work week. However, overtime pay laws vary state to state. If your employment site is outside of California, please consult your applicable state supplement.

California: If you are a NONGSHIM non-exempt employee working in California, you will be paid overtime as follows: a.) at the rate of one and one-half (1.5) times your regular pay rate for the first four (4) hours of work performed in excess of eight (8) hours and at the rate of two (2) times your regular pay rate for all hours worked in excess of twelve (12) hours in one (1) work day; b.) at the rate of one and one-half (1.5) times your regular pay rate for all hours worked in excess of forty (40) hours in any single work week; and c.) at the rate of one and one-half (1.5) times your regular pay rate for the first eight (8) hours of work and at the rate of two (2) times your regular pay rate for all hours of work in excess of eight (8) hours on the seventh consecutive day of work in any work week.

Overtime Pre-Approval and Reporting:

Non-exempt employees must receive overtime pre-approval using the Company's form. Reporting overtime worked does NOT eliminate the requirement to obtain advance consent from your manager. A non-exempt employee who reports unauthorized overtime worked will be paid the appropriate rate for such reported overtime work, but shall be subject to discipline, including termination, for working unauthorized overtime hours.

Overtime, Weekend & Holiday Work:

Due to the nature of our business, overtime, weekend and holiday work is necessary on a regular basis. Therefore, the Company requires reasonable overtime and holiday work as a condition of employment. The Company will attempt to give you advance notice if you are designated to perform overtime, weekend or holiday work. However, you may be required to perform such work on short or no notice. Every attempt will be made to offer overtime on an equal basis; however, operating needs will determine how many employees and what skills will be required for the overtime work. Non-exempt employees who are scheduled for and do work on one of our

Company observed holidays will be paid one and one-half (1.5) times your hourly rate for all hours actually worked, in addition to your holiday pay.

Nothing in this policy changes or alters the following basic overtime pay rule: All overtime must be approved by your manager. If you work unauthorized overtime, you are subject to disciplinary action.

Call Back Pay:

The Company recognizes your right to privacy during your non-working hours. However, situations do occur that may require your services at other than your regularly scheduled work shift. If such a situation does arise, and you are a non-exempt employee who is called into work at a time other than your regularly scheduled shift or are called back to work within the same calendar day after completing a regular work shift, you will be paid for the greater of two (2) hours or the actual number of hours worked, or as required by applicable law. Any call back pay hours paid but not actually worked under this provision will not be used in the calculation of overtime pay.

Reporting Pay:

A non-exempt employee who is scheduled to work and reports to work, but is sent home before performing any work, or is furnished less than half of the scheduled day's work, will be paid reporting pay at the employee's regular hourly rate for up to one-half of the number of hours the employee was scheduled to work that day, up to a maximum of four hours of reporting pay. Hours paid as reporting pay will not be counted as hours worked when calculating overtime obligations. Reporting pay will not be paid when the employee is sent home due to threats to employees or property, when recommended by civil authorities, when public utilities fail to supply electricity, water, or gas, or there is otherwise a failure in the public utilities or sewer system, or where the interruption of work is caused by an act of God or other cause not within the Company's control. Nor will reporting pay be paid if there is work available but an employee stops working of their own accord before the end of the scheduled shift.

Discretionary Bonus:

NONGSHIM may offer discretionary bonuses to employees as a way to recognize contributions, performance and business success. Bonus amount, timing, eligibility criteria, and conditions for receiving a bonus are determined by the Company in its sole discretion in accordance with NONGSHIM's Discretionary Bonus Policy available with the Human Resources Team.

4.8 ADVANCES/LOANS

It is not appropriate for a company to assume the responsibility of making loans to employees or to assume the administrative difficulty of providing advances of money against paychecks or advances in vacation against un-accrued vacation. Therefore, in the interest of fair and just

treatment for all, the Company has established a policy of no loans, advances or extensions of credit to an employee.

4.9 PERFORMANCE EVALUATION

NONGSHIM wants to help employees succeed in their jobs and to grow. In an effort to support this growth and success, the Company strives to provide employees with regular feedback on their performance. To the extent possible, formal employee evaluations are done at least once a year. These evaluations will be prepared by each employee's manager and may be used to help determine whether promotions, transfers, demotion, and/or salary adjustments are appropriate. Completed evaluations will be placed in each employee's personnel file.

The performance evaluation is designed to provide structured, two-way communication between you and your manager. It allows the time to discuss your progress and the sharing of ideas on personal and professional development as well as process improvement. The evaluation form generally provides space for your comments. As part of the evaluation process, you are encouraged to use this space to express your thoughts on how you feel about your job.

Promotions: The Company desires to encourage and reward excellence and dedication among all of its employees. When there is the business opportunity to do so, as judged in the Company's sole discretion, the Company will promote those employees whose performance and achievements merit such advancement.

Demotions: When an employee fails to perform his or her job satisfactorily or to make necessary improvements in their work performance, the Company, in its sole discretion, will discipline employees as appropriate, including potentially demoting employees to a more appropriate position.

Salary/wage reviews typically, but not necessarily, occur in conjunction with the annual performance review process. The calculation and implementation of changes in base salary/wage depend on both company and personal performance and is solely at the Company's discretion. A good performance evaluation does not guarantee a pay raise, nor is it a promise of continued employment.

4.10 OPPORTUNITIES FOR ADVANCEMENT – PROGRESSION AND PROMOTION

NONGSHIM seeks to provide employees with every opportunity for advancing to other positions or opportunities within the company. Approval of progression moves or promotions depends largely upon training, experience, work record, and business need. It is the Company's policy to promote from within the organization when feasible, and current employees generally will be given first consideration for positions for which they are qualified. However, NONGSHIM reserves the right to look outside the company for potential employees as well.

NONGSHIM may post positions on Company bulletin boards for employees to review. Internal applications will be provided by the Human Resources Team for those employees interested in applying for those positions.

Subject to its operational requirements, the Company reserves the right to transfer employees at its discretion. Employees may also be transferred upon their request if the Company deems the transfer appropriate and consistent with its business and operational needs.

4.11 TRANSFER POLICY

NONGSHIM recognizes that a desire for career growth and other needs may lead an employee to request a transfer to another position. An employee with proper qualifications will be eligible for consideration for transfer to another department based on the sole discretion of the Management in accordance with business needs of the Company.

4.12 OUTSIDE EMPLOYMENT POLICY

Outside business activities and/or employment are discouraged for full-time employees. However, you may engage in outside business activities and/or employment during time other than regular working hours, provided that such employment (a) does not interfere with your work performance or work schedule; and (b) does not compete with the Company or use any Company confidential information. Employees are strictly prohibited from using Company property, systems, information or equipment in connection with outside employment, and must comply with the Company's policies on conflict of interest and confidential information. This policy does not apply to employees who may be subject to work restrictions based on visa status or other work authorization limitations; employees with such restrictions are responsible for complying with them. If you are a full-time employee, we ask that you disclose any prospective outside business activity or outside employment to your supervisor/lead person to ensure that there will not be any conflict with your work for the Company. If you engage in outside business activities and/or employment that interferes with the performance of your duties for NONGSHIM, you may be subject to disciplinary action, up to and including termination of employment.

5. STANDARDS OF CONDUCT AND WORK PERFORMANCE

5.1 GENERAL GUIDELINES

The Company expects each employee to conduct themselves in a professional and ethical manner and to engage in the performance of work lawfully, ethically, with good sense, and in the best interests of the Company. This means that, among other things, employees are expected to conduct themselves in a manner that will uphold NONGSHIM's reputation for optimum cleanliness, excellent customer service, courteousness, efficiency, safety and timeliness.

All employees are urged to become familiar with NONGSHIM's *Standards of Conduct and Work Performance* set out in Sections 5.1 *et seq.* of the Handbook and are expected to follow them faithfully in performing their job duties and in conducting the Company's business.

Any failure to meet these high *Standards of Conduct and Work Performance* is grounds for concern, discipline, and/or termination.

5.2 ATTENDANCE POLICY

Employees are expected to be present, and ready for work, when and where they are assigned. Reliable, on-time attendance provides for better efficiency and minimizes hardship to co-workers.

The following definitions are used in this Attendance Policy:

No Call/No Show: Any absence from work during scheduled hours without manager permission, including partial-day absences, late arrivals and early departures. Each day of an unauthorized No Call/No Show absence will count as one occurrence.

Tardiness: An employee's absence from his/her workstation at normal work-schedule starting time or after lunch-break starting time of more than 5 minutes. Each instance of tardiness will count as one occurrence. Repeated tardiness violations may subject an employee to discipline, up to and including termination of employment.

Reporting Absences: Employees who will be absent for a full or partial workday must notify their direct manager as far in advance as possible and at least one (1) hour before the start of the workday. Employees who must miss scheduled work because of emergencies or other unexpected circumstances must notify their manager as soon as possible. Employees must report each day they are absent and provide the reason and probable duration of the absence. Leaving a message with coworkers or other unauthorized parties is not considered proper notification. If you are unable to reach your manager, leave a voicemail message for your manager and follow up to confirm it was received.

Attendance Discipline:

An employee who incurs one or more No Call/No Show absences during any 12-month period may be subject to immediate discipline, including:

- (1) a three-day suspension following a first No Call/No Show offense; and
- (2) termination of employment following a second No Call/No Show.

Unapproved absences caused by legitimate emergencies or an employee's unforeseeable use of protected leave under applicable laws will not be counted as attendance violations.

Job Abandonment:

Any employee who is absent for three (3) consecutive scheduled workdays without notifying (No Call/No Show) his or her direct manager or receiving approval for the absences will be deemed to have abandoned his or her job with the Company. Job abandonment will be treated as a voluntary resignation effective immediately.

5.3 HARASSMENT POLICY

The Company prohibits discrimination, harassment or sexual harassment, including verbally or physically harassing conduct as slurs, jokes, or intimidation, by co-workers, supervisors, managers or third parties of any employee or applicant or other covered person (as defined below) based upon, or directed toward, any characteristic protected under applicable federal, state or local law.¹ The Company also prohibits and does not tolerate unlawful harassment against employees who are perceived to have any of these characteristics or who associate with a person who has, or is perceived to have, any of these characteristics.

Although all forms of prohibited harassment are serious, special rules and standards have developed regarding sexual harassment that merit careful attention. Sexual harassment means any harassment based on someone's sex (including that individual's pregnancy, childbirth, breastfeeding, or medical conditions relating to pregnancy, childbirth or breastfeeding), sexual orientation or gender (including that individual's gender identity and gender expression) and regardless of the harasser's sex or gender, as well as any unwelcome sexual advances or requests for sexual favors or any other conduct of a sexual nature, when any of the following is true:

- Submission to the advance, request or conduct is made either explicitly or implicitly a term or condition of employment.
- Submission to or rejection of the advance, request or conduct is used as a basis for employment decisions.
- Such advances, requests or conduct have the purpose or effect of substantially or unreasonably interfering with an employee's work performance by creating an intimidating, hostile or offensive work environment.

The Company will not tolerate any form of sexual harassment, regardless of whether it is:

¹ For California employees, this includes: race, religious creed, religious belief, observance, or practice, including dress or grooming practices, color, age, national origin (including language use restrictions, or an employee's or applicant's possession of a driver's license issued under Vehicle Code Section 12801.9 (which authorizes licenses to individuals who cannot provide satisfactory proof of their presence in the U.S. under federal law), ancestry, physical disability, mental disability, medical condition (including any cancer-related physical or mental health impairment from a diagnosis, record or history of cancer), genetic information or characteristics, marital status, sex (including pregnancy, childbirth, breastfeeding or medical conditions relating to any of these things), gender, gender identity (meaning a person's identification as male, female, a gender different from the person's sex at birth, or transgender), gender expression (meaning a person's gender-related appearance or behavior, whether or not stereotypically associated with the person's sex at birth), sexual orientation, reproductive health decisions, and military and veteran status.

- Verbal (for example, epithets, derogatory statements, slurs, sexually-related comments or jokes, suggestive or obscene letters, unwelcome sexual advances or requests for sexual favors).
- Physical (for example, assault, inappropriate physical contact or impeding or blocking movements).
- Visual (for example, displaying sexually suggestive posters cartoons or drawings, sending inappropriate adult-themed gifts, leering or making sexual gestures).
- Retaliatory (for example, threatening retaliation or taking retaliatory action).

This list is illustrative only, and not exhaustive. No form of sexual harassment will be tolerated. The Company prohibits sexual harassment by employees, other workers and representatives (including vendors/patients/customers/subscribers/clients and visitors).

Harassment and Discrimination Prohibited

For purposes of anti-harassment, covered persons protected by law include employees, applicants, unpaid interns, volunteers, and independent contractors. For purposes of anti-discrimination, covered persons protected by law include employees and unpaid interns.

Harassment can occur in the workplace, after hours, or on social media. It should always be reported and will not be tolerated by the Company.

Supervisors and managers who observe harassing, discriminatory, or otherwise unlawful conduct, or who receive any complaints of misconduct must report the conduct or complaint to the Human Resources Team so that an investigation can be made and corrective action taken, if appropriate.

Complaint Procedure: Internal

If you are subjected to any conduct that you believe violates this policy or witness any such conduct, you must promptly report the conduct, either orally or in writing. You may speak to, write, or contact any of the following resources at the Company:

- A Supervisor/Lead Person.
- The Human Resources Team.

Your complaint should be as detailed as possible, including the names of all individuals involved and any witnesses.

The Company will ensure that a fair, timely, and thorough investigation is conducted by qualified personnel in an impartial manner that provides all parties with appropriate due process and reaches reasonable conclusions based on the evidence collected. The Company will maintain appropriate documentation and tracking to ensure reasonable progress is made. At the close of

the investigation, the Company will consider appropriate options for remedial actions and resolutions. If misconduct is found, the Company shall take prompt, corrective action, up to and including termination of employment as appropriate. The Company will maintain confidentiality to the extent possible. You will be informed of the results of the investigation. The Company strictly prohibits retaliation as a result of lodging a complaint or participating in any workplace investigation relating to this policy.

The Company is committed to enforcing this policy. The effectiveness of our efforts depends in part on employees telling us about inappropriate workplace conduct. If you feel that you or someone else may have been subjected to conduct that violates this policy, you should report it immediately.

California Employees: In addition to the Company's internal process for reporting discrimination and harassment, you have the right to contact and file a complaint with the California Civil Rights Department (CRD) or Equal Employment Opportunity Commission (EEOC). The address and telephone number for the local CRD office can be found in the local phone book or at <https://calcivilrights.ca.gov/contactus/>. All California employees are required to undergo harassment prevention training as required by applicable law. For more information on this training requirement, visit <https://calcivilrights.ca.gov/>.

5.4 DRUG-FREE WORKPLACE POLICY

NONGSHIM is committed to a drug free workplace. It is the intention of the Company to provide a drug-free work environment through establishment of policies for the control of illegal/unauthorized drug use and use of controlled substances by its employees. Accordingly, by this policy, NONGSHIM intends to establish guidelines against alcohol and substance abuse that may negatively affect an employee's performance, or may place at risk any other employee or the Company.

To protect our employees, customers and the Company against the adverse effects that may result from employee involvement with illegal/unauthorized drugs or alcohol on the premises, NONGSHIM will take any action that is legally acceptable to prevent the possession, sale, transfer or use of illegal/unauthorized drugs or alcohol in the workplace. The Company will not tolerate any form of illegal/unauthorized drug use or alcohol use that violates this policy.

The legal use of prescribed drugs is permitted on the job only if it does not impair your ability to perform the essential functions of your job safely, effectively, and in a manner that does not endanger you or other individuals in the workplace. Employees who take over-the-counter medication or are prescribed medication should inform the Human Resources Team before reporting to work while under the influence of that medication if the medication may impair their job performance, safety, or the safety of others or if they believe they need a reasonable accommodation because the medication is used to treat a disability.

The following conduct may result in corrective action, up to and including termination (or, for applicants, withdrawal of their job offer):

1. A positive test for illegal drugs or alcohol.
2. Refusal to submit to substance tests, tampering or attempting to tamper with test results, or failure to complete testing within the required time period..
3. Unauthorized use or possession of, or trafficking in illegal drugs at work, in Company vehicles or on Company or customer property, or reporting for work or being at work under the influence of illegal drugs.
4. Refusal to comply with published Company security policies, including but not limited to, reasonable searches of person and/or personal property for illegal drugs or other contraband.
5. Pursuant to applicable law, any off work misconduct which reflects negatively on an employee's suitability for continued employment with the Company, and/or causes or has the potential to cause harm to the Company's reputation with its customers and/or the general public, including but not limited to, the use or possession of, or trafficking in illegal drugs.

For purposes of this policy, the following definitions apply:

1. Drugs and Controlled Substances: Any dangerous, addictive or behavior influencing drug, the use, sale or possession of which is prohibited or controlled by applicable local, state or federal law, including, but not limited to, drugs commonly known as cocaine, heroin, PCP and LSD. While the use of marijuana has been legalized under California law for medicinal and recreational uses, it remains an illegal drug under federal law. Unless doing so would cause the Company to violate federal law or cause the loss of a federal contract or funding, the Company will not discriminate against certified patients for exercising their rights to use medical marijuana, however, all employees, including certified patients, are prohibited from being impaired by or using marijuana while working.
2. Unauthorized Use or Possession: Use or possession other than as prescribed by a licensed physician or other authorized medical practitioner.
3. Company or Customer Property: All property owned or occupied by the Company including buildings, parking lots, vehicles and equipment. This includes, but is not limited to, customer places of business where employees or contractors of the Company may be performing work.

4. Under the Influence: Having a detectable amount of illegal drugs and/or alcohol in the body. The presence of nonpsychoactive cannabis metabolites alone will not constitute a positive substance test for purposes of this policy except as permitted by applicable law.

Drug/Alcohol Screening Tests: Applicants for employment may be subject to pre-employment testing after receiving a conditional offer of employment. Current employees shall be required to undergo a drug and/or alcohol screening test under the following circumstances:

- a. In instances where there is cause to believe that an employee may be under the influence of illegal drugs or alcohol, including, but not limited to, instances where an employee's appearance, speech or behavior creates a reasonable suspicion that he or she may be under the influence of illegal drugs and/or alcohol.
- b. In instances when the employee exhibits objective symptoms of substance impairment that adversely affect job performance, productivity, or safety.
- c. In instances of employee involvement in near industrial accidents or near accidents which result in damage to property or injury to persons, and there is reasonable suspicion that the accident occurred because the employee was under the influence of illegal drugs and/or alcohol.
- d. Upon return from leave of absence granted pursuant to a voluntary disclosure of illegal drug use as outlined below.

Conduct of Test: Tests under this Policy and Drug Free Program will be conducted as follows:

- a. Testing will be conducted by an established testing laboratory in accordance with applicable law. In the instances of urinalysis, no representative, agent or designee of the Company shall directly observe an applicant or employee in the process of producing a urine sample; provided, however, collection will be in a manner reasonably calculated to prevent substitutions or interference with the collection or testing of reliable samples.
- b. All substance testing will be conducted by a certified independent testing facility, using appropriate chain of custody requirements and with due regard to employee privacy. The Company will pay for the full cost of the test. Non-exempt employees will be compensated at their regular rate of pay for time spent submitting to a Company-required substance test.
- c. Employees suspected of working while under the influence of illegal or controlled drugs and/or alcohol will be transported to and from the testing facility and will be suspended without pay until the Company receives the results of a substance test from the testing facility and any other information the Company may require to make an appropriate determination.

- d. All initial positive test results will be confirmed by a second test. A certified medical review officer (MRO) who is trained in the field of substance abuse will review and certify all positive test results before reporting them to the Company; individuals testing positive will be given a copy of the test report and the opportunity to explain to the medical review officer the positive result and/or provide information, which they consider relevant, including information concerning currently or recently used prescription or nonprescription drugs. The MRO will take this information into account when interpreting any positive test results; if the employee provides a reasonable explanation or medical opinion indicating that the original test results were not caused by use of illegal drugs or by alcohol consumption the test will be reported as negative.

Results of Tests: All records relating to an employee or applicant's substance test results will be kept confidential to the extent required by law and maintained separately from the individual's personnel file.

Resources: The Company provides an employee assistance program (EAP) for all employees. The EAP is designed to help individuals manage personal problems that can impact their well-being and work performance. Treatment is confidential (unless an EAP counselor is required by law to disclose information such as child abuse) and will not become a part of an employee's personnel records. For more information about the EAP, contact Human Resources. If you have questions or concerns about substance dependency or abuse, you are encouraged to use the resources of the EAP prior to the point at which violations of this policy occur. You may also wish to discuss these matters with your supervisor or Human Resources to receive assistance or referrals to appropriate resources in the community.

5.5 POLICY ON NONDISCLOSURE AND PROTECTION OF CONFIDENTIAL INFORMATION

Each employee is responsible for safeguarding confidential information obtained in connection with employment with the Company. In the course of your work, you may have access to confidential information regarding the Company, its suppliers, its customers, and perhaps even fellow employees. It is your responsibility to ensure that you do not in any way use, copy, share, reveal or divulge any such information unless it is necessary for you to do so to perform your authorized duties for the Company. Access to confidential information is on a "need-to-know" basis. Your obligations to maintain the confidentiality of such information will continue after your employment with the Company ends. Any breach of this policy will not be tolerated and legal action may be taken by the Company.

Every employee of NONGSHIM is required to sign and comply with the Company's employee non-disclosure agreement governing the protection of the Company's confidential information, trade secrets, and other protected materials. Compliance with the terms of the Company's employee non-disclosure agreement is a condition of employment with the Company.

5.6 SOLICITATION, DISTRIBUTION & ACCESS POLICY

Out of respect for the privacy of our employees and the Company's desire to receive the full benefit of employee productivity, no person who is not an employee of the Company may come on the premises to solicit for any cause or to distribute material of any kind for any purpose.

Solicitation by an employee of another employee is prohibited while either the person doing the soliciting or the person being solicited is on working time. No employee shall distribute or circulate any written or printed material in work areas at any time, or during his or her working time or during the working time of the employee or employees at whom such activity is directed.

Employees are not permitted access to the interior of Company property during off duty hours. Unless authorized to remain on Company property, employees are required to be off the premises within 10 minutes of the start or end of a regularly scheduled workday.

It is a violation of Company policy for any employee to furnish to anyone not employed by the Company written lists of names and addresses of employees prepared by the Company for business purposes and internal use.

This policy does not apply to approved commercial vendors invited on the premises by the Company.

This policy in no way prohibits employees from engaging in any activities that are protected under applicable state and federal laws, including, but not limited to, any activity that is protected under Section 7 of the National Labor Relations Act, which includes the right of employees to speak, raise concerns and/or debate about their wages, hours and working conditions at the Company.

5.7 NO VIOLENCE IN THE WORKPLACE POLICY

NONGSHIM has adopted a policy prohibiting workplace violence. Consistent with this policy, acts or threats of physical violence, including intimidation, harassment, and/or coercion, which involve or affect NONGSHIM, or which occur on NONGSHIM or client property, will not be tolerated. The Company strives to provide a safe workplace for all employees. To ensure a safe workplace and to reduce the risk of violence, all employees should review and understand all provisions of this workplace violence policy. Without exception, acts and threats of violence are not permitted. All such acts and threats, even those made in apparent jest, will be taken seriously and will lead to appropriate discipline, up to and including termination. A threat includes, but is not limited to, any indication of intent to harm a person or damage Company property. Threats may be direct or indirect, and they may be communicated verbally or nonverbally. It is every employee's responsibility to assist in establishing and maintaining a violence-free work environment.

This list of behaviors, while not exhaustive, provides examples of conduct that is prohibited:

- Causing physical injury to another person;
- Making threatening remarks;
- Aggressive or hostile behavior that creates a reasonable fear of injury to another person or subjects another individual to emotional distress;
- Intentionally damaging employer property or property of another employee;
- Possession of a weapon while on company property or while on company business;
- Committing acts motivated by, or related to, sexual harassment or domestic violence.

Any potentially dangerous situation or violation of this policy must be reported immediately to Human Resources. The Company is committed to thoroughly investigating all reports of workplace violence and will take prompt, appropriate action commensurate with the offense. Confidentiality will be maintained to the extent practical given the Company's need to investigate. Anyone with questions about the application of this policy should contact Human Resources.

Weapons Prohibited

In furtherance of this policy, employees are prohibited from bringing or possessing firearms, explosives, or other weapons on Company property except where otherwise noted in any applicable state supplement.

5.8 ETHICAL STANDARDS

Our reputation for integrity and excellence requires all employees to commit to compliance with applicable laws and regulations, and the highest standards of conduct and personal integrity. The continued success of the Company is dependent upon our customers' trust, and we are dedicated to preserving that trust. Employees are expected to act in a way that will merit that continued trust and confidence. The Company will comply with all applicable laws and regulations and expects its directors, officers, and employees to conduct business in accordance with the letter, spirit, and intent of all relevant laws and to refrain from any illegal, dishonest, or unethical conduct.

If you have observed or are concerned about any kind of unethical or illegal conduct, you should report such behavior promptly to Human Resources or any member of management.

5.9 WORKPLACE ATTITUDE

NONGSHIM insists on its employees maintaining a positive workplace attitude. Disparaging or derogatory comments about fellow employees, management, the Company, vendors to the Company or competitors of the Company are strongly discouraged. Repetitive or frequent

displays of unprofessional workplace attitude may lead to discipline or termination of employment.

5.10 WORK AREA

It is the responsibility of each employee to clean off his or her desk/work area, and to leave unfinished work neatly on the desk of work area at the end of each workday.

5.11 PERSONAL MAIL

Company facilities are not designed to handle personal mail. Your cooperation is requested in having all personal mail addressed to your home.

5.12 ELECTRONIC COMMUNICATION (E-MAIL), SOFTWARE, & INTERNET

NONGSHIM provides its employees, on a “need to know and use within the employee’s job description” basis, with access to its computers, computer networks and systems, internet access, email accounts, mobile devices, and other electronic systems (collectively “computer systems”) and with the necessary information technology to facilitate “electronic communications” (defined below) among NONGSHIM’s personnel, clients, customers, vendors, and other parties in connection with NONGSHIM’s business. This policy governs the usage of such computer systems and all electronic communications. For purposes of this policy, the following are considered “systems users”: all full-time, part-time, and temporary employees of NONGSHIM, as well as all employees of temporary employment agencies who are working at NONGSHIM, and all third-party contractors with access to NONGSHIM computer systems.

For purposes of this policy, “electronic communications” include but are not limited to the following:

- Electronic mail, facsimiles, screen savers, and bulletin boards;
- Software and software-created files;
- Communications using collaboration platforms, such as Microsoft Teams, Zoom, Slack, Webex or any similar videoconferencing, audioconferencing or messaging platforms;
- Use of any other online services and applications; and
- Use of the Internet (all activities connected to the Internet, including but not limited to Web browsing, downloading files and file sharing, online chatting, and newsgroup access).

PRIVACY NOTE: Systems users should not and DO NOT have an expectation of privacy in their workplace electronic communications, including e-mail messages and of the Internet, or in any matter created, stored, transmitted, or received using NONGSHIM computer systems.

Rather, data or information on NONGSHIM's computer system should not be considered personal or private, but must be treated as any other NONGSHIM-owned property, subject to access by NONGSHIM. (In particular, systems users should be aware that e-mail messages are recorded and stored, even after a user has "deleted" an e-mail message from his/her own records.) NONGSHIM reserves the right to monitor, access, review, record and disclose electronic communications and any other use of its computer systems at any time with or without notice for any purpose that NONGSHIM, in its sole discretion, deems appropriate – and to inspect and service all aspects of its computer systems.

It is NONGSHIM's desire and responsibility to ensure that electronic communications are used prudently, properly, and in a manner consistent with all applicable laws and NONGSHIM's business principles. Therefore, all NONGSHIM's systems users must comply with the following in the use of the NONGSHIM's computer systems:

- Use of the NONGSHIM computer system and other Company owned equipment and systems are provided strictly for Company purposes.
- Incidental and limited use of the NONGSHIM's computer systems, including email and the Internet, for personal use is acceptable. However, employees are required to exercise good judgment when using the computer systems for personal use to make certain that such usage 1) does not interfere with their ability to complete their work in a timely and efficient manner or incur additional operational costs to NONGSHIM and 2) protects the integrity and security of NONGSHIM systems. Failure to do so may result in disciplinary action.
- With the pre-approval of the department manager, a computer may be used by a guest if accompanied by an authorized systems user. The guest may not log on to the network. A guest may use a NONGSHIM computer by canceling out of the network log-on and password screens.
- DO NOT install, download from or upload onto NONGSHIM's computer systems (including its computer network or individual computers) files or software from the Internet or other outside sources without the permission of the NONGSHIM's Systems Team. Systems users must not disable virus protection software provided on NONGSHIM's computers or install their own virus protection software. Systems users must take all reasonable steps to protect NONGSHIM's computers from all types of damage, including from viruses, physical abuse, or unauthorized use. All new software must be approved and installed by a member of the Systems Team. Software/programs may not be downloaded from the internet or brought in from the outside without prior written approval from Systems Team. Employees may not install software on the NONGSHIM's computer systems without prior written permission from the Systems Team. All hardware and software for use in connection with NONGSHIM's business is to be procured solely by the Systems Team in order to protect the company from software

licensing infractions and ensure that requested technology will operate correctly in the NONGSHIM's computer systems. System users agree to consult the Systems Team for recommendations when considering purchasing hardware or software for use at NONGSHIM.

- Systems Team is exclusively responsible for all equipment installations, disconnections, modifications, and relocations; system users are not to perform these activities. This does not apply to temporary moves of portable computers for which an initial connection has been set up by Information Services.
- All employees are prohibited from taking shared portable equipment such as laptop computers off of Company premises without the prior informed consent of their team manager. Informed consent means that the manager knows what equipment is leaving, what data is on it, and for what purpose it will be used.
- Employees using the Internet using Nongshim's computer systems (including social media) are representing the Company. Employees are required and responsible for ensuring that the Internet is used in an effective, ethical, and lawful manner.
- Systems users are prohibited from:
 - Using a computer account that the systems user is not authorized to use.
 - Obtaining a password for a computer account without the consent of the account owner.
 - Using NONGSHIM's computer systems to gain unauthorized access to any outside computer system.
 - Knowingly performing an act which will interfere with the normal operation of computers, terminals, peripherals, or networks.
 - Knowingly running or installing on the computer systems, or giving to another systems user, a program (including, but not limited to, any program known as a computer virus, a Trojan horse, or a worm) intended to damage or to place excessive load on the computer systems.
 - Attempting to circumvent data protection schemes or uncover security loopholes.
 - Violating terms of applicable software licensing agreements or copyright laws.
 - Deliberately wasting computing resources.
 - Using electronic mail to harass others.

- Attempting to monitor or tamper with another systems user's electronic communications, or reading, copying, changing, or deleting another systems user's files or software without the explicit agreement of that systems user.
- Sending or forwarding without authorization confidential or proprietary NONGSHIM's information, business or trade secrets of NONGSHIM, or confidential information about NONGSHIM's employees.
- Sending outside of NONGSHIM information that is commercially sensitive or that may have contractual or other legal implications to NONGSHIM, unless such information is sent for a specific, authorized business purpose.
- Using electronic communications for any illegal purposes, such as but not limited to, pyramid schemes, gambling, and copyright infringement. Examples of copyrighted materials are software, music, movies, pictures, electronic books, and other literary and artistic material.
- Accessing, sending, forwarding, downloading, storing, printing, or deliberately receiving any electronic communications consisting of:
 - Pornographic, obscene, indecent or other sexually explicit materials;
 - Derogatory or hate messages;
 - Chain letters;
 - Vulgar, defamatory, derogatory, threatening, or otherwise inappropriate electronic communications;
 - Messages, including but not limited to "jokes" and ethnic or racial slurs, that might reasonably be construed as discriminatory or disparaging on the basis of race, color, religion, sex, sexual orientation, national origin, age, disability, or any other status protected by law;
 - Junk e-mail (i.e., e-mail messages that are sent via distribution lists and that concern non-business-related topics, such as jokes);
 - Drug-related Web sites for the purpose of distributing, selling, possessing, manufacturing, transferring, or using controlled substances;
 - Gambling Web sites; or

- Messages that contain content that may reasonably be considered offensive to any employee.
- Using NONGSHIM's computer system for personal gain or profit or for private or non-NONGSHIM's commercial activity such as personal surveys or research.
- Using electronic communications to distribute materials or otherwise promote, or solicit other systems users on behalf of commercial ventures, political or religious causes, charitable organizations, or other causes or groups.
- Sending any electronic communication that can cause NONGSHIM to incur liability, such as by ordering goods (unless specifically authorized) or by misusing signatory powers.
- Deliberately sending e-mail containing a computer virus.
- Encrypting any electronic communication unless their direct Manager and the IT Department approve the encryption and NONGSHIM has the means to decrypt.
- Sharing passwords to the NONGSHIM's computer system or otherwise allowing access to NONGSHIM's computers or its computer systems, unless the Systems Team approves the business justification to do so. The systems user is held accountable for any actions resulting from the use of his/her User-ID and password.
- Transmitting or causing to be transmitted any electronic communications anonymously, without the systems user's identity, under a fictitious name, or under any other false identity (including that of an individual other than the actual sender).

NOTE: NONGSHIM reserves the right to investigate any potentially inappropriate electronic communication or use of its computer system. System users who violate this Policy will be subject to disciplinary measures up to and including termination.

5.13 USE OF COMPUTER SOFTWARE

All software installed on Company devices must be approved by the Company and employees may use software only as permitted by the applicable license or subscription agreement. Personal, trial, shareware, pirated, unlicensed, or otherwise unauthorized software may not be installed or used on Company systems.

5.14 SOCIAL MEDIA NETWORK POLICY

Purpose:

1. The Social Media Network Policy is not intended to discourage an employee from utilizing social media but rather to clarify the rules and guidelines NONGSHIM expects its employees to adhere to when using social media.
2. This policy also protects the privacy, confidentiality, and interests of NONGSHIM and our current and potential products, employees, partners, and customers. Employees' use of social media can pose risks to NONGSHIM's confidential and proprietary information, reputation, and brands, expose the company to legal claims, and jeopardize the Company's compliance with business rules and laws. This policy is intended to minimize such risks.
3. Please note that this policy and related guidelines are intended to apply to work-related sites, products, references, personnel and issues and are not meant to infringe upon your personal interaction or commentary online.
4. This policy emphasizes that the Company's computer systems are to be used for authorized purposes related to the Company's business in a responsible and appropriate manner.

Policy:

1. Employee Code of Conduct for Online Communications
 - Social media, whether for professional or personal use, should never be used in a way that violates any other NONGSHIM policies or employee obligations. For example, online postings should never disclose any information that is confidential or proprietary to the Company or to any third party that has entrusted such information to NONGSHIM.
 - NONGSHIM encourages you to maintain an appropriate level of professionalism, knowledge and accuracy when posting or interacting online. Despite disclaimers, your online interactions can result in members of the public forming opinions about NONGSHIM and its employees, partners, and products.
 - Respect the privacy rights of fellow employees at all times by seeking their permission before posting any content relating to them.
 - You may not sell any product or service that would compete with, or is similar to, any of NONGSHIM's products or services without explicit permission in writing from the President of the Company. If in doubt, speak with your manager and/or the President.
2. Employee Code of Conduct for Company Representation in Online Communications
 - If you mention NONGSHIM and/or our current or future products, employees, partners, customers, or business on any website or social media platform, you must

identify yourself as an employee of NONGSHIM and clearly state that the views expressed are yours alone and do not represent the views of the Company.

- While using online platforms, networks and sites, employees should not claim or imply that they are speaking on NONGSHIM's behalf.
- If you list NONGSHIM as your place of employment on a personal website or social media account (i.e., Facebook, Twitter, etc.), you agree not to post any content that is illegal, defamatory, threatening, infringing on intellectual property rights, or that constitutes an invasion of privacy on that site or account.
- Online content posted by employees should not include NONGSHIM logos and/or trademarks unless prior permission was requested and granted by authorized NONGSHIM personnel.
- Online content posted by employees that mentions or relates to NONGSHIM must be: (i) compliant with copyright, privacy, fair use, financial disclosure, and other applicable laws;
- If you learn of any violation of the Social Media Network Policy by another employee, you are required to report it to management.
- NONGSHIM reserves the right to monitor employee use of Company computer systems at all times, and employees should have no expectation of privacy when using such computer systems.

3. Employee Usage Policy (Re.: Facebook, Instagram, LinkedIn, Twitter, etc.)

- Employees are prohibited from engaging in personal web logging or "blogging" during work hours or while using company equipment.
- Employees' online activities (including but not limited to Facebook, Instagram, Twitter, or LinkedIn, etc.) outside of work hours and not using company equipment, must still adhere to NONGSHIM's confidentiality policies which prohibit disclosure of trade secrets, proprietary information or other confidential information belonging to NONGSHIM's.
- Unless your job position requires business-related use of blogs, social media networks, or other online platforms for the benefit of the Company, you must obtain prior approval before posting content online about the Company .
- NONGSHIM reserves the right to request that content posted by employees that is inappropriate or reflects negatively on the Company be withdrawn, removed or deleted, subject to applicable law.

4. Employee Personal Social Network Policy

- You may not share or disclose confidential and proprietary information of NONGSHIM. This includes but is not limited to, information about trademarks and other intellectual property, upcoming product releases, sales, finances, company strategy, and any other information that has not been publicly released by NONGSHIM.
- The above are given as examples only and it does not limit what NONGSHIM considers confidential and proprietary information. If you have any questions about any particular information having already been released publicly or doubts of any kind, speak with your manager and the Human Resources Team before releasing information that could potentially harm NONGSHIM, or our current and potential products, employees, partners, and customers.
- Recognize that you may be held personally liable for anything you write or present online. Employees may be disciplined by the Company for commentary, content, or images that are defamatory, pornographic, unauthorized, harassing, libelous, or that can create a hostile work environment.
- You may also be subject to litigation by other employees, competitors, and any individual or company that views your commentary, content, or images as defamatory, pornographic, unauthorized harassing, libelous or creating a hostile work environment.

This policy in no way prohibits employees from engaging in any activities that are protected under applicable state and federal laws, including, but not limited to, any activity that is protected under Section 7 of the National Labor Relations Act, which includes the right of employees to speak, raise concerns and/or debate about their wages, hours and working conditions at the Company.

5.15 PHONE USAGE POLICY

The Company fully understands the necessity of communication between our employees and their families and/or personal business while at work. Due to the nature of our operations and requirement for attention at all times, use of cell phones while on the production floor or any other working areas of the facility are prohibited.

Employees may use cell phones while on break and lunch, and all personal calls/texts should be made during scheduled breaks or lunch periods, in non-working areas.

Due to proprietary processes and equipment, cameras and picture taking while on the production floor is prohibited. Unless you are specifically authorized to do so by your manager, taking pictures of any person or work area is strictly prohibited. This applies for all areas of the facility,

and in accordance with applicable laws, NONGSHIM strictly prohibits secretly recording other people in private areas.

Except for management personnel with communication needs, cell phones will not be allowed in the production area and the Company will not be responsible for loss or damage of personal cell phones brought into the area. Management personnel must limit their usage of cell phones to Company business only while on the floor.

5.16 SMOKING POLICY

No smoking of any kind is permitted inside any NONGSHIM buildings or showrooms. Smoking may take place only in designated smoking areas, outside of NONGSHIM's facilities. Moreover, NONGSHIM will strictly enforce any state and/or municipal laws concerning designated smoking areas.

5.17 VISITORS IN THE WORKPLACE

For safety, insurance, and other business considerations, only authorized visitors are allowed in the workplace. When making arrangements for visitors, employees should request that visitors enter through the main reception area and sign in and sign out at the front desk. *Employees must inform their manager prior to making arrangements for a visitor to come on the premises.*

5.18 CORRECTIVE PROCEDURE

All NONGSHIM employees are at-will employees, meaning the employee or the Company may terminate the employment relationship at any time, with or without cause, and with or without notice. However, the Company, at its discretion, may also administer a progressive discipline system that includes one or more instances of verbal counseling, one or more written warnings, suspension without pay, demotion, and ultimately, termination. Progressive discipline is not mandatory, and the Company reserves the right to deviate from the order or any specific form of progressive discipline described in this policy. Progressive discipline does not apply in cases of workforce reductions and layoffs.

5.19 CRISIS SUSPENSION

During the investigation of an employee accused or suspected of committing a serious violation of NONGSHIM policies, the employee may be suspended without pay pending an investigation of the situation.

5.20 EMPLOYMENT TERMINATION/RESIGNATION/LAYOFF

Termination - NONGSHIM reserves the right to terminate any employee for any lawful reason, including, but not limited to, poor performance, misconduct, excessive absences, tardiness, or other violations of the Company rules, as elsewhere described. (See section 6 Rules of Conduct of this Handbook.)

Resignation - If you plan to leave NONGSHIM, as a courtesy to us, you are asked to give at least two (2) weeks written notice so that we will have the opportunity to recruit a replacement prior to your leaving. Please note, however, that you are an at-will employee and may leave NONGSHIM at any time, without any notice. In your letter of resignation, should you elect to provide one, please specify the last day you will be at work and include the reason for leaving; e.g., going back to school, moving out of state, starting own business, found another job, etc. If you are going to another employer, we would appreciate knowing what the new employer is offering that we are not and the name of your new employer.

Layoff - Generally occurs due to business necessity and is initiated by the Company. An example would occur if the Company decided to reduce the number of employees during an economic downturn or during a time when there was a significant reduction of work. Generally speaking, the Company would normally be hopeful that the circumstances that necessitated the reduction in personnel would turn around and allow the laid off employees to be recalled.

Vacation Pay at Termination - Employees who are terminated, resign or are laid off will be paid for all accrued, but unused, vacation days.

Final Paycheck - Employees will receive their final paycheck within the time required by applicable law.

Exit Interview - The Company may ask to conduct an exit interview with you to discuss your reasons for leaving and any other impressions that you may have about NONGSHIM. This exit interview will be conducted by Human Resources Team.

Benefits Continuation - The federal Consolidated Omnibus Budget Reconciliation Act (COBRA) gives employees and their qualified beneficiaries the opportunity to continue health insurance coverage under the Company's health plan when a "qualifying event" would normally result in the loss of eligibility. Some common qualifying events are resignation, termination of employment, or death of an employee; a reduction in an employee's hours or a leave of absence; an employee's divorce or legal separation; or a dependent child no longer meeting eligibility requirements. Under COBRA, the employee or beneficiary pays the full cost of coverage at the Company's group rates plus an administration fee. Eligible employees will be provided with a written notice describing rights granted under COBRA when the employee becomes eligible for coverage under the Company's health insurance plan. The notice contains important information about the employee's rights and obligations.

5.21 COMPANY PROPERTY

The protection of Company business information, property and all other Company assets are vital to the interests and success of the Company. Employees are expected to exercise care in the use of Company equipment and property and use such property only for authorized purposes. No Company-related business, financial or other non-public proprietary information and Company-

owned or leased property, including without limitation, documents, files, records, computer files, equipment, office supplies or similar materials (except in the ordinary course of performing duties on behalf of Company), may therefore be removed from Company premises, without express authorization from Human Resources, and then only following required security procedures. Employees are required to keep log-in information secure and shall not share log-in information with anyone other than authorized Company personnel. Employees are expressly prohibited from using Company facilities, Company property, or Company equipment for personal use.

Immediately upon demand by the Company, or in any event, on or before an employee's last day of employment, employees are required to return to the Company all Company information and property that the employee has in his/her possession, custody or control, including without limitation, documents (hard copy and electronic), files, records, manuals, information stored on a personal computer or on a computer disc or other device, supplies, and equipment or office supplies.

5.22 WORKPLACE INSPECTIONS - EMPLOYEE PRIVACY NOTICE

NONGSHIM wishes to maintain a work environment that is free of illegal drugs, alcohol, firearms, explosives, stolen property, or other improper materials. We require the cooperation of all employees in administering this policy.

The Company provides lockers, closets, desks, and workstations, where appropriate, for the convenience and use of its employees. Employees should remember that all material containers remain the sole property of the Company.

The Company, by any agent or representative at any time, either with or without prior notice, may make personal and property inspections, including in your absence. Such inspections may include email, computer files, and other records of computer use. Accordingly, please be aware that you do not have an expectation of privacy in company-provided email or internet access, company-owned computers, other company property, or your own property when on company premises.

To protect the property and to ensure the safety of NONGSHIM employees and others, the Company reserves the right to conduct searches, consistent with the law. To the extent permitted under applicable law, the Company reserves the right to open and inspect all material containers on Company premises, whether locked or unlocked, as well as any contents, affects or articles that are in them.

The Company is not responsible for any articles that are placed or left in lockers, desks, closets or workstations that are lost, damaged, stolen or destroyed, whether locked or unlocked.

The Company's telephone and computer systems permit employees to receive, send and transfer voice mail messages and electronic mail messages. Although employees may be able to use

codes to restrict access to phone messages and electronic mail messages that are left on the systems, phone and computer systems are intended solely for business use.

In keeping with this intention, the Company maintains the ability to monitor any phone calls made on its telephone system. It also maintains the ability to access any messages left on, or transmitted over, the phone system or the computer system, including the electronic mail system, regardless of passcodes used by employees to restrict access.

Because the Company reserves the right to obtain access to all voice mail and computer data, including electronic mail, left or recorded on the systems, employees should not assume any such messages to be confidential or that access by the Company or its designated representative will not occur.

5.23 SAFETY RULES AND PROCEDURES

The safety and health of NONGSHIM employees is a high priority for the Company. NONGSHIM is committed to implementing and complying with all federal and state workplace safety requirements. Our safety program is designed to provide a comprehensive approach to accident prevention and safety awareness within the Company. These Safety Rules and Procedures are provided in addition to NONGSHIM's **separate and written** *Injury Illness & Prevention Program, Heat Prevention Safety Plan and Workplace Violence Prevention Program*.

Safety is the responsibility of all of us at NONGSHIM. We are all responsible for recognizing hazards, correcting them, making certain that safe working conditions exist on the job, and safe operating practices are observed. We are all responsible for the prevention of accidents.

In compliance with applicable law, and to promote the concept of a safe workplace, the Company maintains an Injury and Illness Prevention Program. The Injury and Illness Prevention Program is available for review by employees and/or employee representatives in the Human Resources Team.

Protective devices, clothing, and equipment necessary to properly protect employees from injury will be provided by the Company.

Each employee is expected to follow safety rules and exercise caution and common sense in all work activities. Following is a list of safety rules that an employee of NONGSHIM is expected to comply with. Willful violation of or disregard of these rules or common safety practices may be cause for disciplinary action or dismissal.

1. Report every accident or injury immediately, no matter how minor, to an authorized company representative (manager, Human Resources Team, etc.). Not reporting a work-related injury within the work shift may result in discipline, including suspension without pay, and up to and including termination.
2. Report all unsafe or potentially hazardous conditions to your manager.

3. Do not run on company property.
4. Smoke only in designated areas.
5. Comply with danger and warning signs.
6. Deposit all refuse and recyclables in appropriate containers provided for that specific item.
7. Do not obstruct exits, aisles or passageways, or block access to fire exits or extinguishers. (Familiarize yourself with emergency exits and know the location and operation of the nearest fire extinguisher.)
8. Employees may not lift any object in excess of the limits prescribed by law. If a load is so unwieldy as to create a possible injury (regardless of weight), the employee must ask for assistance. Employees are required to use proper lifting procedures.
9. No open-toed, open-heeled shoes or high-heels may be worn in the production areas. Proper footwear, as designated by the Company shall be worn in the production areas.
10. If you believe a machine is not operating properly, report it to your manager immediately. Do not attempt to repair it.
11. There are certain machines in the plant which require pushing a start button to operate. These machines may only be started by authorized personnel.
12. Sunglasses may not be worn inside the plant without written authorization from a physician or health services provider.
13. Employees, who are on prescription medication that may affect their work performance or judgment as informed by their healthcare provider or pharmacist, must notify their manager or a Human Resources Team's Representative immediately.
14. An employee who has or may be carrying an infectious disease or condition which requires quarantine, must secure permission to work from a physician and must report the matter to the Human Resources Team and his/her manager before coming to work.
15. First aid stations are located in various areas of the plant. For more information, see your manager or a Human Resources Team's Representative.

5.24 INJURY ON THE JOB, FIRST AID TREATMENT & WORKERS' COMPENSATION

Our work facility is equipped with a First Aid Area. If you are injured while working, even if it appears to be a minor cut or scratch, you must immediately notify your manager and/or a Company officer.

If your case requires additional treatment, you will be taken to our industrial clinic for medical care unless you have made other prior arrangements with the Human Resources Team. We will continue your pay on the day of your injury for the time you are off work.

If you are ordered by the industrial clinic physician or the Company to remain off work for the remainder of the day of your injury, your wages will continue for the balance of your normal workday.

When the industrial clinic physician recommends that you see a specialist, if you are working, you will be paid for any lost time for the first visit if such appointment cannot be scheduled outside your working hours.

Follow-up visits to the industrial clinic physician or specialist, are to be scheduled on your own time, and pursuant to applicable worker's compensation law.

It is a felony for a person to knowingly file, or assist in filing, a false claim of injury for the purpose of obtaining workers' compensation benefits.

5.25 DRESS CODE POLICY

The Company wishes at all times to maintain a positive image and professional atmosphere with its customers, visitors, and the general public and within the Company's work environment. All employees are expected to wear business casual attire at all times while at work from Monday to Thursday.

All laboratory and production personnel must wear the Company's uniform while on duty. Uniforms should be clean, neat, and free of dust and spots at all times.

On Fridays, the Company follows a casual day policy except for employees required to wear uniform. Employees are required to maintain a clean, neat, and professional appearance. Round-neck T-shirts, shorts, sandals, slippers, halter-tops, tank tops, hats, overalls, sweat suits, and anything that appears too casual are not allowed at any time. Jeans are only allowed on Fridays.

Failure to comply with this dress code policy may subject you to disciplinary action.

5.26 COMPANY SOCIAL EVENTS

On occasion, the Company may sponsor or arrange social and recreational functions. At all such social and recreational functions, employee participation is entirely voluntary. Such voluntary functions are not considered work time. Employees, at such functions, are not compensated for their time in attendance, and are not covered by workers' compensation or similar insurance, pursuant to applicable law. The Company may not be liable or responsible for any injuries to employees while attending any such voluntary social functions, pursuant to applicable law. Further, Employees are responsible for their own behavior and actions, and the Company will

not be responsible for nor indemnify or hold the employee harmless from any damage or injury caused by the Employee at any such function, pursuant to applicable law.

5.27 *DAMAGE TO COMPANY PROPERTY*

Employees will be responsible for any damage caused to Company property which is the result of the Employee's dishonesty, willful act or gross negligence.

6. UNACCEPTABLE CONDUCT – GUIDELINES AND DISCIPLINE

We expect employees to conduct themselves in a manner that furthers our mission. The following conduct is prohibited and will not be tolerated. Please note this list is illustrative only, not exclusive, and other types of conduct that threaten security, personal safety, employee welfare and Company operations also may be prohibited and will result in disciplinary action, up to and including termination. The following is a non-exhaustive list of conduct that may violate this policy:

1. Unauthorized possession of Company property, or of the property of a fellow employee;
2. Willful destruction of Company property or the property of a fellow employee;
3. Deliberate misuse or unauthorized use of Company supplies, materials, machines or tooling;
4. Fighting with, threatening or attempting bodily injury to another employee on Company premises;
5. Falsifying Company records or reports, including time records or the time records of another employee;
6. Insubordination, including, but not limited to, failure or refusal to obey the instructions of a superior or the use of abusive or threatening language toward a superior;
7. Using excessively abusive, threatening or obscene language;
8. Unexcused absenteeism or tardiness;
9. Dishonest conduct, including, but not limited to, taking bribes or unauthorized charges against Company's account, and receiving money, merchandise or services from a customer or vendor for personal gain without authorization;
10. Disclosing or using Company confidential, proprietary or trade secret information without authorization;
11. Working unauthorized overtime;

12. Interfering with another employee's efforts to meet Company work standards; and/or
13. Unsatisfactory job performance.

Violation of this policy may lead to disciplinary action, up to and including discharge. The Company may consider an employee's job performance, prior violation of work rules, and other relevant circumstances in determining whether to counsel, warn, suspend or discharge an employee. Employment is at-will and the Company retains the discretion to impose appropriate disciplinary action, including immediate termination of employment.

6.1 AT-WILL EMPLOYMENT AND DISCIPLINE

Please Note: Nothing in the NONGSHIM progressive discipline system alters the at-will nature of your employment at by the Company. You and the Company each retain the right to terminate the employment relationship at any time, with or without cause or notice.

7. EMPLOYEE GROUP BENEFITS

7.1 BENEFITS SUMMARIES AND ELIGIBILITY

NONGSHIM sponsors certain benefits plans and programs for eligible employees subject to the terms and conditions of the applicable plan documents. For your convenience, some of the available benefits are summarized below, subject to the plan documents, which take precedence over anything inconsistent in the summaries below.

All regular full-time employees may be eligible to participate in the Company's benefit plans and programs.

The Company reserves the right to modify or eliminate benefits described in this Employee Handbook as necessary in the Company's discretion.

7.2 GROUP INSURANCE

The Company makes available to employees, at their option, a selection of group health insurance plans. These plans currently include medical, dental, vision and life insurance. Employees are eligible to enroll in these plans upon completion of the Introductory Period or as otherwise required by applicable law. To qualify for participation in the group insurance plans, an employee must work the minimum hours each workweek required by the group insurance policies then in effect. The details of the group insurance plans are available by contacting the Human Resources Team. You will be given insurance booklets when you qualify for participation.

7.3 *DISABILITY INSURANCE*

Various states provide for short-term disability income for employees who are unable to work because of non-work- related illness or injury. Certain employees in these states may be required by law to participate in the plan through employee contributions made by automatic payroll deductions. The amount of the benefits payable to an employee is calculated by the state, generally based on the employee's earnings in the previous twelve-month period prior to the commencement of the disability.

For California-based employees of NONGSHIM, California employees contribute to a state fund to provide short-term disability insurance pursuant to state law. Contributions are made through automatic payroll deductions. This insurance provides a partial wage replacement to employees who are unable to work due to short term illness, accident or disease not arising out of the worker's employment, thus not covered by Workers' Compensation. SDI benefits must be applied for through the California Employment Development Department and do not begin until you have been absent from work for seven calendar days. The SDI program does not provide a leave of absence, separate job protection, or return rights. Employees may obtain further information about state disability and workers' compensation benefits from the Human Resources Team.

7.4 *UNEMPLOYMENT INSURANCE*

This program is designed to give you benefits when you lose your job through no fault of your own. The state in which you are employed determines who is eligible and handles all of the claims and forms for this benefit, the cost of which is 100% paid for by the Company.

7.5 *WORKERS' COMPENSATION INSURANCE*

In the event of an on-the-job injury or illness, workers' compensation insurance may cover medical expenses, surgical and hospital benefits, supplemental wages, retraining and death benefits. The amount allowable for these benefits is established by law and is available to all employees, including part-time and temporary employees. Any employee who sustains an on-the-job injury or illness should immediately report the injury or illness to his/her manager and Human Resources Team.

7.6 *401(k) PLAN*

The Company offers eligible employees the option to enroll in a 401(k) program after completion of the Introductory Period. The terms and conditions of that plan shall be governed by that plan, and the Company retains the right to modify, amend, or terminate that plan at any time at its sole discretion, including amendments which eliminate an employee's right to participate.

7.7 EMPLOYEE DISCOUNTS

Full-time employees are eligible to receive a discount on the Company's core products. The employee discount policy may be reviewed, altered, or discontinued at any time. Current employee discount rates and order forms can be obtained through our Human Resources Team.

8. TIME-OFF BENEFITS

8.1 PAID HOLIDAYS

We observe the following as paid holidays for full-time employees (Regular part-time and temporary employees will generally not be required to work on Company holidays but will not receive pay for them):

- New Year's Day
- Memorial Day
- President's Day
- Friday after Thanksgiving Day
- Christmas Day
Juneteenth
- Labor Day
- Independence Day (July 4th)
- Thanksgiving Day
- Christmas Eve
- Founding Day (July 1)

Full-Time Employees: Upon completion of the Introductory Period, Full-Time non-exempt employees are eligible to receive eight (8) hours pay at their hourly rate for each holiday.

General Information: Full-time, non-exempt employees who work on a holiday, in addition to eight (8) hours of holiday pay, will be paid time at one and one-half (1.5) times their hourly rate for all authorized time actually worked.

With the exception of Founding Day (July 1st), when a Company observed holiday falls on a Saturday, the preceding Friday will be observed as that holiday. If it falls on a Sunday, the following Monday will be observed as that holiday. If Founding Day falls on a Saturday or Sunday, the previous Friday will be observed as that holiday. The Company reserves the right to determine which day will be designated for observed holidays.

In our Canadian offices, holidays in lieu of those observed only in the U.S. are given, as determined, by the manager of such office. You will be advised as to those alternate holidays.

The Company will make reasonable efforts to accommodate holidays of observance pertaining to employee's established religious beliefs that are not included in the above observed holiday list. At least two weeks prior to an employee's religious day(s) not listed above, the employee should

Speak with his or her managers to obtain approval for taking time off to observe such day(s). Such additional days off are provided without pay (although the employee may use any available paid time off)..

8.2 VACATION BENEFIT

We believe that all employees who have earned a vacation should welcome the chance for a rest and a break from their regular routine; therefore, the Company is pleased to grant vacations with pay.

Vacation Accrual: Upon completion of the Introductory Period, a newly hired office employee will be entitled to accrue paid vacation benefits while working based on their years of service with the Company (length of employment) as shown in the table below. Vacation will accrue on a prorated basis over the course of the applicable year.

Completed Years of Service	Annual Accrual Maximum
0-2	10 days
3-4	11 days
5-6	12 days
7-8	13 days
9-10	14 days
11-12	15 days
13-14	16 days
15-16	17 days
17-18	18 days
19-20	19 days
21 or more	20 days

PLEASE NOTE THAT EMPLOYEES WILL MOVE TO THE NEXT TIER OF VACATION ACCRUAL ON JANUARY 1, FOLLOWING THE COMPLETION OF SERVICE IN THE PRIOR TIER. FOR EXAMPLE, AN EMPLOYEE HIRED ON JULY 1, 2018, WILL BEGIN ACCRUING 6 DAYS OF VACATION ON JANUARY 1, 2022.

Accrual ceases once an employee reaches 1.5 times the employees' annual accrual maximum. When an employee drops below this maximum amount, accrual will resume.

Up to 12 days of accrued, unused vacation days will be carried over to next year. If the employee has more than 12 days of accrued vacation leave, they will be paid out for any accrued vacation time in excess of 12 days.

Requesting and Using Vacation Time:

Any employee planning to take a vacation should notify and seek approval from his/her manager at least two (2) weeks in advance of the planned vacation commencement date. In determining whether to approve the vacation request, managers will take into account the Company's operational needs. Vacations are normally taken in full week increments but may be taken in half (1/2) day or one (1) day increments with advance approval from your manager. An authorized Company holiday that falls on a normal business day during your vacation will not be counted as a vacation day. It is a manager's responsibility to review and approve vacation request on a timely manner. It is an employee's responsibility to provide reasonable time for vacation requests. Furthermore, it's employee's responsibility to receive all necessary approvals prior to taking vacation.

The Company reserves the right to designate certain black out dates on which vacation usage may be restricted. Typically, when holiday observance results in paid holidays on consecutive days (e.g., Christmas Eve and Christmas Day), the day immediately preceding and the day immediately following the observance will be designated as black out dates.

Pay on Separation: Upon termination of employment, accrued, but unused vacation time will be paid out.

8.3 PAID SICK LEAVE

The Company provides all employees with 5 days of paid sick leave on January 1 each year. At the end of the year, unused leave is forfeited. New employees can begin using paid sick leave beginning on the 90th day of their employment with the Company.

Employees may request PSL in writing or verbally, and can take PSL for their own diagnosis, care or treatment of an existing health condition, preventive care or for specified purposes where the employee or their family member is a victim of domestic violence, sexual assault, stalking, or certain violent or serious felonies, as set forth in the HWHFA and the laws incorporated into the HWHFA, including California Government Code section 12945.8(a); where the employee is a victim of any crime and is appearing in court as a witness to comply with a subpoena or other court order; where the employee is serving on an inquest jury or trial jury; and, for agricultural employees, for certain environmental reasons. Employees may also use their PSL for qualifying purposes for their family members, including for a family member's care. Family member means biological, adopted, foster, legal ward, in loco parentis, or stepchild, regardless of age or

dependency status, biological, adoptive, foster, or stepparent or legal guardian of the employee or their spouse or domestic partner, spouse, domestic partner, grandparent, grandchild, or sibling.

PSL may be used in two hour increments. If the need for PSL is foreseeable, the employee shall provide reasonable advance notification. If the need for PSL is unforeseeable, the employee shall provide notice of the need for the leave as soon as practicable. The Company reserves the right to require documentation of the appropriate use of sick leave in accordance with the law. The Company will not discriminate or retaliate against an employee for requesting or using PSL in accordance with this policy.

PSL will run concurrently with any other available paid sick leave. Unused PSL will not be paid out upon termination of employment.

8.4 *BEREAVEMENT LEAVE*

Regular, full-time employees who have worked for NONGSHIM at least thirty (30) days are eligible to take up to five days of bereavement leave if a member of the employee's immediate family dies. For purposes of this policy, a "member of the immediate family" includes spouses, parents, brothers, sisters, children, grandchildren, grandparents, parents-in-law, domestic partners and their parents. This time off is intended to be used to attend memorial services, as well as to attend to associated family matters. Leave under this policy may be taken on an intermittent basis and all five days of leave need not be taken all at once, although leave for each death must be completed within three months of the date of death of the family member. Additionally, the five days of leave entitlement applies to separate death events of immediate family members as defined in this policy. For example, should an employee have a parent who dies, and then a sibling who dies, the employee may take five (5) workdays of bereavement leave for each death of each immediate family member (10 workdays).

Compensation For Bereavement Leave: NONGSHIM shall pay a qualifying regular full-time employee for a total of five (5) workdays per calendar year for bereavement leave taken, which will be paid at the employee's base rate of pay. Any additional bereavement leave taken under this policy may be taken as unpaid leave, but the employee may elect to use accrued and unused paid time off (vacation or sick leave) while using bereavement leave.

Request for Bereavement Leave and Documentation: Employees should make requests for bereavement leave to their Manager as soon as possible. NONGSHIM reserves the right to request verification of the death of the family member of the employee, and if such request is made, the employee should provide the proof within 30 calendar days after the death of the family member. Examples of proof of death include but are not limited to a death certificate, a published obituary, or written verification of death, burial, or memorial services from a mortuary, funeral home, burial society, crematorium, religious institution, or governmental agency. In addition, for any portion of Bereavement Leave that is paid by NONGSHIM (in contrast to employee's use of their own accrued and unpaid leave time), NONGSHIM may require the

employee to provide proof of the employee's family relationship to the deceased, as well as proof of attendance and/or travel for memorial services.

8.5 CALIFORNIA - REPRODUCTIVE LOSS LEAVE

All employees who have been employed by the Company for at least 30 days prior to the date that a leave is to commence under this policy are eligible for reproductive loss leave. Specifically, employees may use up to five (5) days leave for each reproductive loss event and may take a maximum of 20 total days of this leave within a 12-month period. Reproductive loss leave need not be taken in consecutive days and may be taken intermittently so long as the leave is completed within three (3) months of the reproductive loss event. If prior to, or immediately following a reproductive loss event, an employee is on or chooses to take pregnancy disability leave, a CFRA or FMLA leave, or any other leave entitlement under state or federal law, the employee shall complete their reproductive loss leave within three months of the end date of the other leave.

A reproductive loss event for purposes of this leave includes any of the following:

- A Failed Adoption, which means the dissolution or breach of an adoption agreement with the birth mother or legal guardian, or an adoption that is not finalized because it is contested by another party. This event applies to an employee who would have been a parent of the adoptee if the adoption had been completed.
- A Failed Surrogacy, which means the dissolution or breach of a surrogacy agreement, or a failed embryo transfer to the surrogate. This event applies to an employee who would have been a parent of a child born as a result of the surrogacy.
- A Miscarriage, which means a miscarriage by an employee, by the employee's current spouse or domestic partner, or by another individual if the employee would have been a parent of a child born as a result of the pregnancy.
- A Stillbirth, which results from an employee's pregnancy, the pregnancy of an employee's current spouse or domestic partner, or another individual, if the employee would have been a parent of a child born as a result of the pregnancy that ended in stillbirth.
- An Unsuccessful Assisted Reproduction, which means an unsuccessful round of intrauterine insemination or of an assisted reproductive technology procedure. This event applies to an employee, the employee's current spouse or domestic partner, or another individual, if the employee would have been a parent of a child born as a result of the pregnancy.

Reproductive loss leave is unpaid; however, an employee may use accrued but unused vacation or sick leave.

8.6 CIVIC DUTY COMMITMENTS

Employees are sometimes required to participate when summoned for civic duty, which may include Jury Duty and/or Witness Duty.

For non-exempt and exempt employees, the Company will provide you with a leave of absence, with pay, for a maximum of three (3) days of jury duty per summons. Employee must give the Company fifteen (15) days advance notice prior to date of appearance as per the summons. Such leave in excess of three (3) days will be unpaid.

You are requested to notify your manager and Human Resources Team promptly, within one business day of receiving a summons, when you receive the summons so that:

1. Work assignments can be rescheduled; and
2. Temporary employees may be obtained, if needed.

Employees summoned for jury duty who take a leave of absence under this section must furnish satisfactory evidence of the service performed under the summons immediately upon return to work.

8.7 MILITARY RESERVES OR NATIONAL GUARD AND RELATED LEAVES OF ABSENCE

Employees who serve in U.S. military organizations or state militia groups such as the National Guard may take the necessary time off to fulfill this obligation and will retain all of their legal rights for continued employment under existing laws. Specifically, the Uniformed Services Employment and Reemployment Rights Act (“USERRA”) govern the leave and reinstatement requirements for military personnel. A copy of the military orders should be submitted to the Company when received. All military leave for non-exempt employees is unpaid. Exempt employees will be compensated for a maximum of five (5) days per year while on military leave. Employees on USERRA leave will be allowed to continue their medical, dental and vision insurance coverage. If an employee’s USERRA leave is for 30 or fewer days, NONGSHIM will continue to pay the company’s share of the employee’s insurance premiums. The employee will be required to continue to pay his/her share of the insurance premiums during the leave as well as pay the premiums for any dependents covered by such insurance.

If an employee’s USERRA leave is for 31 or more days, the employee will be required to pay 100% of the insurance premiums for the employee and any dependents covered by such insurance (plus a 2% administrative charge). The arrangements for any such premium payments will be discussed when the employee provides notice of the leave. If the employee elects not to return to work at or before the expiration of the leave, NONGSHIM may be entitled to recover the cost of payments that it made on behalf of the employee during the leave period. Also, if eligible, the employee and any covered dependents will be offered continuation coverage under the Consolidated Omnibus Budget Reconciliation Act of 1985 (“COBRA”).

Additionally, under a California law effective October 9, 2007, spouses of members of the armed forces may take up to 10 days of unpaid time off while the employee's spouse is home on leave from deployment. Employees may elect to use accrued vacation time benefits to cover this absence. If the employee has no accrued vacation time, the employee must request time off without pay.

Eligible employees are employees who work an average of 20 hours per week and have a spouse or domestic partner who is serving as (1) a member of the U.S. Armed Forces and who has been deployed during a period of military conflict to an area designated as a combat theater or combat zone by the President of the United States or (2) a member of the Armed Forces Reserve Components or the National Guard and has been deployed during a period of military conflict.

Eligible employees who wish to request this leave must provide the Company with a written request for such leave within two business days of receiving official notice that the military spouse or domestic partner will be on leave from deployment. The employee must also provide written documentation to the Company certifying that the military member will be on military leave from deployment.

Military spouse or domestic partner leave may run concurrently with leave under the FMLA to the extent permitted by federal and California law.

8.8 CALIFORNIA – CIVIL AIR PATROL

This policy applies to employees working in California only.

Employees who are volunteer members of the California Wing of the civilian auxiliary of the U.S. Air Force (Civil Air Patrol) responding to an emergency operation mission may take up to ten days of unpaid leave per year. Employees must have been employed for at least 90 days immediately preceding commencement of the leave. Leave required for any single emergency mission cannot exceed three days, unless extended by the entity in charge of the operation and the extension is approved by the Human Resources Team. Employees must give as much notice as possible of the intended dates of leave. The Company may require documentation of the need to take the leave and may deny leave if certification is not provided. Employees will be reinstated to the position held when leave began or an equivalent position with equivalent seniority status, benefits, pay and other terms and conditions of employment.

8.9 FAMILY/MEDICAL LEAVE OF ABSENCE

Eligibility

To qualify for FMLA leave, you must: (1) have worked for the Company for at least 12 months, though it need not be consecutive; (2) worked at least 1,250 hours in the last 12 months; and (3)

be employed at a work site that has 50 or more employees within 75 miles. If you have any questions about your eligibility for FMLA leave, please contact the Company.

Leave Entitlement

You may take up to 12 weeks of unpaid FMLA leave in a 12-month period, which [is defined as a calendar year/is defined as a fiscal year/is measured from an employee's anniversary date of hire/is measured forward from the date an employee's first FMLA leave begins/uses a "rolling" method that is measured backward from the date you use any FMLA leave] for any of the following reasons:

- the birth of a son or daughter and in order to care for such son or daughter (leave to be completed within one year of the child's birth);
- the placement of a son or daughter with you for adoption or foster care and in order to care for the newly placed son or daughter (leave to be completed within one year of the child's placement);
- to care for a spouse, son, daughter or parent with a serious health condition;
- to care for your own serious health condition, which renders you unable to perform any of the essential functions of your position; or
- a qualifying exigency of a spouse, son, daughter or parent who is a military member on covered active duty or called to covered active duty status (or has been notified of an impending call or order to covered active duty).

You may take up to 26 weeks of unpaid FMLA leave in a single 12-month period, beginning on the first day that you take FMLA leave to care for a spouse, son, daughter or next of kin who is a covered service member and who has a serious injury or illness related to active duty service, as defined by the FMLA's regulations (known as military caregiver leave).

While you are on FMLA leave, the Company will maintain your group health insurance coverage at the same level and under the same circumstances as when you were actively working. Upon returning from approved FMLA leave, you have the right to be restored to the same job or an equivalent position, subject to the terms, limitations and exceptions provided by law.

Both Spouses Employed by the Company

Spouses who are both employed the Company and eligible for FMLA leave may be limited to a:

- Combined total of 12 weeks of leave during the 12-month period if leave is requested: for the birth of a son or daughter and in order to care for such son or daughter; for the placement of a son or daughter with the employee for adoption or foster care and in

order to care for the newly placed son or daughter; or to care for an employee's parent with a serious health condition.

- Combined total of 26 weeks in a single 12-month period if the leave is either for: military caregiver leave; or a combination of military caregiver leave and leave for other FMLA qualifying reasons.

Notice of Leave

If your need for FMLA leave is foreseeable, you must give the Company at least 30 days' prior written notice. If this is not possible, you must at least give notice as soon as practicable (within one to two business days of learning of your need for leave). Failure to provide such notice may be grounds for delaying FMLA protected leave, depending on the particular facts and circumstances.

Additionally, if you are planning a medical treatment or a series of treatments or you are taking military caregiver leave, you must consult with the Company first regarding the dates of such treatment to work out a schedule that best suits the needs of both the employee or the covered military member, if applicable, and the Company.

Where the need for leave is not foreseeable, you are expected to notify the Company within one to two business days of learning of your need for leave, except in extraordinary circumstances. The Company has Family and Medical Leave Act request forms available from the Human Resources Team. Please submit a written request, using this form, when requesting leave.

Certification of Need for Leave

If you are requesting leave because of your own or a covered relation's serious health condition, you and the relevant health care provider must supply appropriate medical certification. You may obtain Medical Certification forms from the Human Resources Team. When you request leave, the Company will notify you of the requirement for medical certification and when it is due (at least 15 days after you request leave). If you provide at least 30 days' notice of medical leave, you should also provide the medical certification before leave begins. Failure to provide requested medical certification in a timely manner may result in denial of FMLA-covered leave until it is provided.

The Company, at its expense, may require an examination by a second health care provider designated by the Company. If the second health care provider's opinion conflicts with the original medical certification, the Company, at its expense, may require a third, mutually agreeable, health care provider to conduct an examination and provide a final and binding opinion. The Company may require subsequent medical recertification. Failure to provide requested certification within 15 days, if such is practicable, may result in delay of further leave until it is provided.

The Company also reserves the right to require certification from a covered military member's health care provider if you are requesting military caregiver leave and certification in connection with military exigency leave.

Reporting While on Leave

If you take leave because of your own serious health condition or to care for a covered relation, you must contact the Company on a biweekly basis regarding the status of the condition and your intention to return to work. In addition, you must give notice as soon as practicable (within two business days if feasible) if the dates of leave change or are extended or initially were unknown.

Leave Is Unpaid

FMLA leave is unpaid. You will be required to substitute any accrued and unused vacation/ sick days for unpaid FMLA leave. The substitution of paid leave time for unpaid FMLA leave time does not extend the 12 or 26 weeks (whichever is applicable) of the FMLA leave period. In no case can the substitution of paid leave time for unpaid leave time result in your receipt of more than 100% of your salary. FMLA leave runs concurrently with other types of leave, for example, accrued vacation time that is substituted for unpaid FMLA leave and any state family leave laws, to the extent allowed by state law.

Medical and Other Benefits

During approved FMLA leave, the Company will maintain your health benefits as if you continued to be actively employed. If paid leave is substituted for unpaid FMLA leave, the Company will deduct your portion of the health plan premium as a regular payroll deduction. If your leave is unpaid, you must pay your portion of the premium as directed by the Company. Your health care coverage will cease if your premium payment is more than 30 days late. If your payment is more than 15 days late, we will send you a letter to this effect. If we do not receive your premium payment within 15 days after the date of this letter, your coverage may cease. If you elect not to return to work for at least 30 calendar days at the end of the leave period, you will be required to reimburse the Company for the cost of the health benefit premiums paid by the Company for maintaining coverage during your unpaid leave, unless you cannot return to work because of a serious health condition or other circumstances beyond your control.

Intermittent and Reduced Schedule Leave

If medically necessary, FMLA leave occasioned by a serious health condition may be taken intermittently (in separate blocks of time due to a serious health condition) or on a reduced leave schedule (reducing the usual number of hours you work per workweek or workday). FMLA leave may also be taken intermittently or on a reduced leave schedule for a qualifying exigency relating to covered military service.

If leave is unpaid, the Company will reduce your salary based on the amount of time actually worked. In addition, while you are on an intermittent or reduced schedule leave, the Company

may temporarily transfer you to an available alternative position that better accommodates your leave schedule and has equivalent pay and benefits.

Returning From Leave

So that your return to work can be properly scheduled, you are requested to provide at least two weeks' advance notice of the date you intend to return to work. If you take leave because of your own serious health condition (except if you are taking intermittent leave), you are required, as are all employees returning from other types of medical leave, to provide medical certification that you are fit to resume work. Otherwise, you will not be permitted to resume work until it is provided. If you believe you need a reasonable accommodation due to a qualifying disability (e.g., accommodation upon return to work in order to perform the essential functions of your position, or additional leave as an accommodation) should contact the Human Resources Team as soon as you are aware of this need.

Upon return from leave you will be reinstated to the same position, if it is available, or to an equivalent position for which you are qualified. Key employees, defined as salaried and FMLA-eligible employees who are among the highest paid 10% of all employees at a worksite or within 75 miles of that worksite, may not be returned to their former or an equivalent position following FMLA leave if restoration of employment will cause substantial and serious economic injury to the operations of the Company. This determination will be made by the Company on a case-by-case basis. The Company will notify you if you qualify as a key employee, if the Company intends to deny reinstatement and of your rights in such instances.

State or Local Family and Medical Leave Laws

Where state or local family and medical leave laws offer more protections or benefits to employees, the protections or benefits that are more favorable to the employee, as provided by such laws, will apply.

8.10 CALIFORNIA – CALIFORNIA FAMILY RIGHTS ACT LEAVE (CFRA)

Under the California Family Rights Act of 1993 (CFRA), as amended, California employees that have more than 12 months of service with the Company and have worked at least 1,250 hours in the 12-month period before the date you want to begin your leave, you may have a right to family care or medical leave. Eligible employees may take an unpaid leave of up to 12 workweeks in a rolling 12-month period, for:

- The birth, adoption or foster care placement of your child.
- Your own serious health condition that makes you unable to perform the functions of your position, except for leave taken for disability on account of pregnancy, childbirth, or related conditions.
- The serious health condition of your family member.

- A qualifying exigency related to the covered active duty (or call to duty) of a family member in the U.S. Armed Forces.

Family member includes an employee's child (including biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis, and adult dependent child, and child of a domestic partner), parent (biological, foster, or adoptive parent, a stepparent, a legal guardian, in-law, or other person who stood in loco parentis to the employee when the employee was a child), spouse, sibling, grandparent, grandchild, domestic partner, and a designated person (any individual related by blood or whose association with the employee is the equivalent of a family relationship, as designated by the employee at the time of a leave request; employees are limited to designating one designated person per 12-month period).

Leave under this policy will run concurrently with any available FMLA leave that can be used, but consecutively with PDL leave, where applicable. During any otherwise unpaid portion of a family leave of absence you must take all accrued paid time off available to you; during any otherwise unpaid portion of a medical leave for your own serious health condition, you must use any available accrued paid time off, including any available paid sick leave. Otherwise, any available paid leave may be used during any leave of absence hereunder by mutual agreement of you and the Company. The Company will notify employees of their options to continue to participate in our group health plans during CFRA leave.

If possible, you must provide at least 30-days' advance notice for foreseeable events (such as the expected birth of a child or a planned medical treatment for yourself or of a family member). For events that are unforeseeable, you must notify the Human Resources Team, at least verbally, as soon as you learn of the need for the leave. Failure to comply with these notice rules is grounds for, and may result in, deferral of the requested leave until you comply with this notice policy.

The Company may require medical certification from your health care provider before allowing you a leave for your own serious health condition, or from the health care provider of your family member who has a serious health condition before allowing you a leave to take care of that family member.

CFRA leave may be taken on an intermittent or a reduced work schedule basis; for baby bonding purposes, the basic minimum duration of the leave is two weeks (on two occasions leave can be taken in shorter increments) and you must conclude the leave within one year of the birth or placement for adoption or foster care. Employees on leave for their own serious health condition will be required to obtain a release to return to work from their healthcare provider that the employee is able to resume work with or without reasonable accommodation. This is a requirement of all employees returning from other types of medical leave. In most cases, the employee will not be permitted to resume work until it is provided. Employees taking CFRA leave will be returned to their prior position upon return from leave. The Company will not discriminate or retaliate against employees from requesting or taking leave or otherwise exercising their rights under the law.

8.11 CALIFORNIA – PAID FAMILY LEAVE

This policy applies to employees working in California only.

PFL is a California State-sponsored insurance program within the SDI program in California. It provides employees with partial wage replacement for up to eight weeks in any twelve-month period while they are absent from work to care for a seriously ill family member (child, parent, parent-in-law, grandparent, grandchild, sibling, spouse, or registered domestic partner), to bond with a new child entering the family through birth, adoption, or foster care placement, or to take time off to participate in a qualifying exigency related to the covered active duty or call to covered active duty of the individuals' spouse, domestic partner, child, or parent in the Armed Forces of the United States. Employees can apply for PFL through the state; however, approval by the state is not automatic and PFL is not job-protected leave, meaning PFL does not provide a leave of absence, separate job protection, or return rights. PFL may, however, provide partial wage replacement during an otherwise unpaid FMLA and/or CFRA leave of absence.

This program is financed by employee contributions. Each employee located in the state of California contributes towards PFL through automatic payroll deductions pursuant to California law. To qualify for PFL, an employee must supply medical information that supports the employee's claim to the California Employment Development Department (the state agency that administers the PFL and SDI programs). California-based employees may contact the California Employment Development Department for more information.

8.12 CALIFORNIA - PREGNANCY DISABILITY LEAVE AND TRANSFER PRIVILEGES

This policy applies to employees working in California only.

Pregnancy Disability Leave:

A maximum of four months' leave will be granted to an employee whose doctor certifies that the employee is disabled and cannot perform her job because of pregnancy, childbirth, or related medical conditions, including morning sickness and prenatal care. Part-time employees are entitled to leave on a pro-rata basis. Employees must provide reasonable notice of a need for and expected duration of leave; at least 30 days advance notice when the need for leave is foreseeable and otherwise as soon as practicable. Medical certification of pregnancy disability must be submitted at the initiation of a pregnancy disability leave of absence. The Company may require that the employee obtain subsequent recertification regarding the employee's disability, verifying the illness and stating the estimated return to work date. PDL may be taken intermittently.

Paid vacation will not be earned or accrue while an employee is on pregnancy disability leave. During PDL, the Company will continue to pay its share of the employee's medical insurance. In some cases, the Company may recover premiums paid for maintaining an employee's health coverage if the employee fails to return to work following a leave. PDL will run concurrently

with any available FMLA leave, and consecutively with any available CFRA leave. Employees must use any available paid sick leave during any otherwise unpaid period of PDL. Employees may elect to use accrued vacation or personal time during the four-month PDL. Following the utilization of any accrued vacation time, if elected, the remainder of the pregnancy disability leave will be on an unpaid basis.

An employee returning from a PDL of up to four months will be returned to her original position or a substantially similar job unless the job has ceased to exist because of legitimate business reasons unrelated to the PDL. Failure to return from a leave, or failure to contact the Labor Coordination Team regarding a request for a possible extended leave will be considered a voluntary resignation.

Pregnancy Accommodation:

The Company will reasonably accommodate an employee for a condition related to pregnancy, childbirth, or a related medical condition, if the employee so requests and the request is supported by the advice of her health care provider. The Company will temporarily transfer a pregnant employee for the duration of her pregnancy, upon the employee's request and the advice of her health care provider, if the Company can reasonably accommodate such a transfer and as long as such a transfer does not require the creation of additional employment, the discharge of any employee, the transfer of any employee with more seniority, or the promotion of any employee who is not qualified to perform the job. Employees must provide reasonable notice of a need for accommodation: 30-days advance notice when the need for leave is foreseeable and otherwise as soon as practicable.

8.13 INTERMITTENT LEAVES

Intermittent Leave: An employee may be eligible to take certain leaves intermittently. Such requests will be approved on a case-by-case basis in accordance with applicable laws.

8.14 CALIFORNIA - SCHOOL ACTIVITIES LEAVE

Employees are encouraged to participate in the school activities of their child(ren) and, if eligible, parents, guardians, or grandparents with one or more children in school (kindergarten through grade 12) may take time off for "school activity participation" subject to the following provisions:

1. The time off for school activity participation cannot exceed eight (8) hours in any calendar month, or a total of 40 hours each school year.
2. Employees must provide as much advance notice as possible to their manager or Human Resources.

3. If both parents are employed by the Company, the first employee to request such leave will receive the time off. The other parent will receive the time off only if the leave is approved by their manager or Human Resources.
4. If requested by the Company, the employee must provide their manager with documentation from the school that indicates that the employee participated in a school activity on day of the absence for that purpose.
5. The employee must use any available personal or vacation time before taking leave under this policy.

School activity participation means the following child-related activities: (A) to find, enroll, or reenroll a child in a school or with a licensed child care provider, or to participate in activities of the school or licensed child care provider of their child, if the employee, prior to taking the time off, gives reasonable notice to the Company of the planned absence of the employee (time off pursuant to this subparagraph shall not exceed eight hours in any calendar month of the year); and/or (B) to address a child care provider or school emergency, if the employee gives notice to the Company.

In addition, employees may take unpaid time off to appear in the school of a suspended pupil pursuant to a request made by the school for the parent or guardian of the suspended pupil to attend part of the school day in the pupil's classroom. Employees must give reasonable notice of the need for such leave.

8.15 CALIFORNIA - BONE MARROW TRANSPLANT AND ORGAN DONATION LEAVE

This policy applies to California employees only. An employee who has been employed by the Company for at least 90 days is eligible to take leave under this policy for purposes of bone marrow or organ donation. An eligible employee may take a leave of absence up to 60 work days per year for the purpose of donating an organ to another person; the oneyear period begins from the date the employee's organ donor leave begins and runs for 12 consecutive months. Only the first 30 days of leave will be paid.

An eligible employee may take a leave of absence up to 5 work days per year for the purpose of donating bone marrow to another person; the oneyear period begins from the date the employee's bone marrow donor leave begins and runs for 12 consecutive months.

If an employee has accrued paid sick leave or other paid time off available, then the employee must use up to two weeks of such time for organ donation and up to five days of such time for bone marrow donation. The Company may approve additional leave for organ or bone marrow donation as appropriate. Prior to taking any such donor leave, the employee must provide written verification that the employee is a donor and that there is medical necessity for the donation. FMLA or CFRA leave will not run concurrently with donor leave.

The Company will continue to provide health insurance benefits for the full term of the donor leave. Vacation time will continue to accrue and holiday benefits will continue to be provided

during this leave. Upon return from donor leave, the employee will be restored to the same or equivalent position.

8.16 CALIFORNIA - LEAVE FOR CRIME VICTIMS TO ATTEND JUDICIAL PROCEEDINGS AND VICTIM'S RIGHTS PROCEEDINGS

This policy applies to California employees only. NONGSHIM shall provide leave to a California-based employee who is the victim of a serious or violent felony or a felony involving theft or embezzlement, or is the immediate family member of a victim, the domestic partner of a victim, or the child of a domestic partner of a victim of one of the types of felonies listed above, may take unpaid time off in order to attend related judicial proceedings, including delinquency proceedings, post-arrest release decision, plea, sentencing, postconviction release decision, or any proceeding where a right of that person is an issue. A California employee who is the victim, or is the immediate family member of a victim, who suffers, direct or threatened physical, psychological, or financial harm due to the commission or attempted commission of the following crimes: vehicular manslaughter while intoxicated; felony child abuse; assault resulting in the death of a child under eight years old; felony domestic violence; felony physical abuse of an elder or dependent adult; felony stalking; solicitation for murder; hit-and-run causing death or injury; sexual assault; or felony driving under the influence causing injury are also entitled to take unpaid leave in order to participate in related judicial proceedings or otherwise obtain or attempt to obtain relief, including, but not limited to, a temporary or permanent restraining order, or other injunctive relief. Employees may take up to twelve weeks of leave under this policy. An immediate family member is defined as a spouse, domestic partner, child, brother, sister, mother, father, and in-laws of a spouse or domestic partner or step relatives. An employee may elect to use accrued vacation time for this leave.

If feasible, the employee must provide a copy of the notice of each scheduled proceeding in advance. When advance notice is not feasible or an unscheduled absence occurs, the employee must, within a reasonable time after the absence, provide the Company with documentation evidencing the judicial proceeding. Such certification may come from any of the following entities: (1) the court or government agency setting the hearing; (2) the district attorney or prosecuting attorney's office; or (3) the victim/witness office that is advocating on behalf of the victim. To the extent allowed by law, the Company will maintain the confidentiality of any employee who requests leave for these purposes.

8.17 CALIFORNIA - LEAVE FOR VICTIMS OF QUALIFYING ACTS OF VIOLENCE

This policy applies to California employees only. NONGSHIM shall provide a leave of absence to an employee who is (1) a victim of a qualifying act of violence or (2) has a family member who is a victim of a qualifying act of violence, may take time off (not to exceed twelve weeks (or if leave is to attend to a family member who is a crime victim, 5 days)) for the following purposes: (a) to obtain or attempt to obtain relief for their family member; (b) seek medical attention, or assist a family member to seek or obtain medical attention, for or recover from

injuries caused by a qualifying act of violence, (c) obtain services from a domestic violence shelter, program, rape crisis center, or victim services organization or agency (d) obtain psychological counseling or mental health services, (e) participate in safety planning, (f) obtain or participate in any legal proceeding related to the qualifying act of violence, or (g) take other actions to increase safety from future domestic violence or sexual assault, including temporary or permanent relocation. Any leave taken hereunder shall run concurrently with FMLA and CFRA leave, if applicable. “Qualifying act of violence” means any of the following: (i) domestic violence; (ii) sexual assault; (iii) stalking; and (iv) acts threatening to cause or resulting in bodily injury or death, including the brandishing of a firearm.

If an employee needs time off from work for one of these purposes or any other purpose protected by law, reasonable notice must be provided to the Human Resources Team, in writing. If an unscheduled or emergency absence is required for the health, safety or welfare of the victim, the employee must provide certification that the employee was absent from work for one of the above reasons within a reasonable time after absence. The documentation must certify the reason for the absence in a manner that meets the applicable legal standards. To the extent allowed by law, the Company will maintain the confidentiality of any employee who requests leave for these purposes. An employee may elect to use accrued vacation time or paid sick leave for this otherwise unpaid leave.

The Company will provide reasonable accommodations to employees who have disclosed their status as a victim of a qualifying act of violence or the family member of a victim of a qualifying act of violence who request accommodations for their safety while at work; examples of such accommodations may include the implementation of safety measures, including a transfer, reassignment, modified schedule, changed work telephone, changed work station, installed lock, assistance in documenting domestic violence, sexual assault, stalking, or other crime that occurs in the workplace, an implemented safety procedure, or another adjustment to a job structure, workplace facility, or work requirement in response to domestic violence, sexual assault, or stalking, or other crime, or referral to a victim assistance organization. “Qualifying act of violence” means any of the following: (i) domestic violence; (ii) sexual assault; (iii) stalking; and (iv) acts threatening to cause or resulting in bodily injury or death, including the brandishing of a firearm.

8.18 CALIFORNIA - ALCOHOL AND DRUG REHABILITATION LEAVE

The Company wishes to assist California-based employees who recognize that they have a problem with alcohol or drugs that may interfere with their ability to perform their job in a satisfactory manner. Employees who have a problem with alcohol and drugs and who decide to enroll voluntarily in a rehabilitation program will be given unpaid time off to participate in the program unless it would result in an undue hardship to provide the time off. The Company will also make reasonable efforts to keep the fact that the employee is enrolled in the program confidential. The employee may use any available accrued paid time off or sick time while on leave. However, additional benefits will not be earned during the leave of absence. The leave will be subject to the same provisions and rules as applies to medical leaves.

8.19 PERSONAL LEAVE OF ABSENCE

When compelling personal circumstances arise, the Company may, at its discretion, grant a personal leave of absence without pay to its employees. If you have completed one (1) year of continuous employment, a personal leave of absence may be granted without pay when limited to a reasonable period of time not to exceed thirty (30) calendar days. A leave will be approved for good and substantial reason contingent upon the work needs of the Company. Requests for personal leave of absence will be considered on an individual basis, in light of the employee's length of service, performance, responsibility level, the reason for the request, whether other individuals are already out on leave, and the expected impact of the leave on the operations of the Company and the employee's department.

The Company may not be able to guarantee reinstatement, or reinstatement in the same position, in all circumstances to employees taking a personal leave. All accrued and unused vacation benefits must be taken prior to the granting of a personal leave of absence without pay. Employees will not earn or accrue any benefits during the period of a personal leave of absence. In addition, should the duration of a personal leave of absence require and the employee desires, he or she must make arrangements to maintain insurance coverage and make the full contribution as required by the plan during the leave.

It is the employee's responsibility to be available and report to work at the end of the approved personal leave. If an employee fails to return to work at the conclusion of a personal leave of absence, including any extension of the leave, the employee will be considered to have voluntarily terminated employment.

8.20 EXTENSION OF LEAVES

If you require an extension of a leave of absence you must submit a written request to the Company not less than five (5) days prior to the expiration of your current leave. In the case of a medical leave, such request must be accompanied by a written physician's statement confirming the need for an additional period of leave and stating the estimated additional time needed for your recovery.

8.21 PROCEDURE FOR OBTAINING LEAVE

Requests for all leaves must be in writing and if the leave is not an emergency it must be requested at least thirty (30) days prior to the start date unless otherwise provided by applicable law. Forms may be requested from the Human Resources Team. In the event of a bona fide emergency, leave may be granted retroactively.

8.22 RETURNING FROM LEAVE

Before resuming work after returning from a medical leave of absence, you may, at the discretion of the Company, be required to provide a physician's statement confirming that you are physically able to resume work.

8.23 EMPLOYMENT WHILE ON LEAVE

If you accept employment with another employer during your leave of absence without written permission from the Company, your employment may be terminated.

8.24 BENEFITS WHILE ON LEAVE

Generally, all benefits normally paid by the Company cease during a leave of absence. However, for FMLA or CFRA leave, or where otherwise required by law, the Company pays its usual portion of the medical, dental, and vision insurance premiums during the leave. It is the employee's responsibility to pay their subsidized portion of the premiums.

The following policies apply to your employment while on leave:

- Vacation accrual/accumulation is suspended during a leave of absence.
- Individuals on leave are not eligible for holiday pay.
- Individuals on leave are not eligible for benefits such as cell phone allowance and auto allowance unless otherwise required by applicable law.
- Original or most recent date of hire will remain unchanged.

8.25 CALIFORNIA - VOTING LEAVE

A California employee whose scheduled work shift does not allow them sufficient time to vote in any state or federal election, will be granted two (2) hours of time off with pay in order to vote. To receive time off for voting, an employee must notify their manager in advance. When the employee returns from voting, he/she is required to present a voter's receipt to their manager.

9. EXPENSES

9.1 INTRODUCTION

The following is a guide to the NONGSHIM's expense policy and procedures for the reporting and reimbursement of expenses. Any manager who approves expense reports should be familiar with this policy—authorizing an expense report indicates to NONGSHIM that the expenses reported are legitimate, reasonable, and comply with this policy.

9.2 *EXPENSE REIMBURSEMENT*

Subject to applicable law, work-related expenses incurred by employees will be reimbursed if the expenditure has been pre-approved and signed by the employee's department manager and the accounting department. Typically, reasonable business travel expenses including transportation, accommodations, meals, tips, telephone and fax chargers, client entertainment, and purchases on behalf of the Company are reimbursable based on actual expenses incurred. Business-class airfare is not eligible for reimbursement unless specifically approved by the President of the Company.

Local expenses include Company purchases, ground transportation while on Company business and/or entertaining clients.

Reimbursable expenses are to be itemized on the Company's expense report and submitted to the department manager for review and approval along with original receipts as instructed by the Accounting Department. Expense reports and receipts must be submitted to accounts payable in order to be processed.

9.3 *COMPANY SUPPLIES, OTHER EXPENDITURES*

Only authorized persons may purchase business supplies on behalf of NONGSHIM. No employee whose regular duties do not include purchasing business-related supplies for the Company may incur such expenses on behalf of NONGSHIM.

9.4 *MILEAGE REIMBURSEMENT*

If you use your own personal vehicle in the course of your job for business purposes, you will be reimbursed at the Company mileage rate in effect at the time (which is generally the same as the mileage rate set by the Internal Revenue Service). The rate is calculated to meet your costs for insurance, fuel, and general wear and tear. Under no circumstances will NONGSHIM assume responsibility for any parking, vehicle repairs and maintenance, or moving violation tickets. If you use your own personal vehicle for business purposes, you may be requested to verify that you have insurance. If you or your insurance company cancels your insurance, you must notify your manager right away.

PLEASE NOTE: For purposes of safety, we require that you wear seat belts when driving on Company business. We request you also inspect your car's tires, lights, brakes, as well as any other safety device, prior to using your own vehicle for Company business. We also desire that you follow all driving laws and use good defensive driving skills while driving.

Additional details concerning the Company's expense reimbursement policies and requirements can be obtained from the Human Resources Team.

10. EMPLOYEE COMMUNICATIONS

10.1 OPEN DOOR POLICY

Our team is dedicated to the following principles:

- We will maintain a working environment that allows for individual initiative and provides opportunities for personal growth and advancement.
- We will provide open communication lines up and down the organization.

We believe it is important that employees be able to discuss their concerns and/or opinions with their managers.

Communication is the primary path to understanding between individuals. The Company believes that good communication is essential to personal accomplishment, progress and satisfaction. Good communication is enhanced through a good working relationship between employees and their Manager.

First, if at any time, you have a problem and need assistance in solving it, you should discuss the matter with your supervisor or manager. This is usually the best and most effective method of dealing with and solving the problem.

Second, if after discussing the situation with your Manager, the matter is still not resolved (or if the matter involves an allegation of harassment or other inappropriate conduct by your manager), you should request a meeting with the Human Resources Team. The Company encourages all office and production employees to report to the Human Resources Team.

Third, if after the completion of the above procedures you are not in agreement with the Company's response, you may request a final review with the Senior Manager or General Manager. The Senior Manager or General Manager will review the issues and provide a final decision for you.

When using any of the steps provided in this procedure, you should arrange all meetings through your Manager. Every effort will be made to follow these steps in a timely manner and maintain communication about the situation with the employee. However, the process may be discontinued if the employee takes action outside of the problem solving process.

When time away from the job is needed to pursue a matter to a higher level of management, you must arrange for the time off through your Manager. At no time will any member of management prevent an employee from requesting an open door meeting or take any action against an employee for requesting or having such a meeting. Retaliation will not be tolerated.

10.2 OPEN COMMUNICATION

NONGSHIM encourages employees to discuss any issues they may have with a co-worker directly with that person. If a resolution is not reached, employees should arrange a meeting with their direct Manager. If the concern, problem, or issue is not properly addressed, employees should contact the Human Resources Team. Any information discussed in an open communication meeting is considered confidential, to the extent possible, while still allowing management to respond to the problem. Retaliation against any employee for appropriate usage of open communication channels is strictly prohibited and may result in discipline, up to and including termination of employment.

10.3 BULLETIN BOARDS

NONGSHIM runs a company-wide bulletin board service where employees can find organizational announcements, news/events, job postings, and discussions about specific topics. Employees are responsible for reading necessary information posted on the bulletin boards.

10.4 SUGGESTIONS

NONGSHIM encourages all employees to bring forward their suggestions and good ideas about making NONGSHIM a better place to work and enhancing service to NONGSHIM's customers. Any employee who sees an opportunity for improvement is encouraged to talk it over with management. Management can help bring ideas to the attention of the people in the organization that will be responsible for possibly implementing them. All suggestions are valued.

10.5 CLOSING STATEMENT

Successful working conditions and relationships depend upon successful communication. It is important that employees stay aware of changes in procedures, policies, and general information. It is also important to communicate ideas, suggestions, personal goals, or problems as they affect work at NONGSHIM.

End of Employee Handbook Text

RECEIPT OF HANDBOOK, ACKNOWLEDGMENT OF AT-WILL EMPLOYMENT

I acknowledge that I have received and read a copy of the NONGSHIM USA, INC., [U.S. Office] Employee Handbook (including any applicable state supplement thereto) (the “Handbook”). I promise to read the Handbook and I agree to abide by the policies, rules and regulations contained in it and with any revisions of them made while I am an employee. I understand that the Company expressly reserves the right to change, modify or delete the policies, guidelines, rules and regulations, and benefits contained in the Handbook at the Company’s discretion at any time and from time to time without prior notice. However, I understand that no statement or representation by a Human Resources Team or Manager, whether oral or written, can supplement or modify the Handbook or any of the policies, guidelines, rules and regulations, or benefits in it. Changes may be made only by the Company, through its Board of Directors and Officers. I acknowledge my understanding that any delay or failure by the Company to enforce any Company policy, rule, regulation or guideline will not constitute a waiver of the Company’s right to do so in the future.

I understand and acknowledge that my employment relationship with the Company is strictly on an “employment-at-will” basis. In other words, the Company may terminate its employment relationship with me, with or without cause, at any time for any lawful reason and I am free to resign as an employee of the Company at any time without prior notice. I understand that although the Company may change other provisions of the Handbook, the “employment-at-will” nature of my employment with the Company cannot be modified except in a specific written contract signed by the President of the Company.

I understand that the Handbook contains policies and procedures regarding, among other things: (i) discrimination and harassment, which prohibits discrimination, harassment and retaliation based on certain characteristics protected by applicable law and includes a complaint procedure to report any prohibited discrimination, harassment or retaliation, and (ii) the Company’s information technology, which provides, among other things, that the Company has the right to monitor, review, retain, disclose and/or take any other appropriate actions regarding any information and electronic communications transmitted through, received by or stored on the Company’s information technology systems and that employees should have no expectation of privacy in using such systems.

If I work for the Company in California, I acknowledge I have received the Harassment Policy.

Date

Signature

Print or Type Name

